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THE
MAGAZINE OF HISTORY

WITH
NOTES AND QUERIES

MAY 1905

WILLIAM ABBATT
281 FOURTH AVENUE, NEW YORK

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Published Monthly \$5.00 a Year 50 Cents a Number

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From the original painting by Birch

THE MOONLIGHT BATTLE

THE "BON HOMME RICHARD" AND THE "SERAPIS" SEPT. 23, 1779

THE MAGAZINE OF HISTORY

WITH NOTES AND QUERIES

VOL. I MAY, 1905. No. 5

**THE PROGRESS OF DISCOVERY OF THE
MISSISSIPPI RIVER**

II THE ROUTES OF PINEDA, NARVAEZ, AND DE SOTO AND MOSCOSO

In 1519 Alonso Alvarez de Pineda (or Pinedo) was sent as commander of an expedition of three or four sailing vessels to explore the coast of Florida and the northern half of the Gulf of Mexico, under a commission from Garay, the governor of the Spanish settlements in Jamaica. The resulting map, transmitted by Garay to Spain, gives a somewhat correctly proportioned outline of the entire gulf, with Florida, Cuba, and Yucatan inclosing it on the east; and the Mississippi is named Rio del Espiritu Santo (River of the Holy Spirit). In Harrisse's *Discovery of North America* (1892, p. 168), a translation from the contemporary Spanish account of this expedition says, concerning the Mississippi, that the ships "entered a river which was found to be very large and very deep, at the mouth of which they say they found an extensive town, where they remained forty days and careened their vessels. The natives treated our men in a friendly manner, trading with them, and giving what they possessed. The Spaniards ascended a distance of six leagues up the river, and saw on its banks, right and left, forty villages."

Pineda's map shows the Mississippi as if it had a wide mouth, growing wider like a bay in going inland, and it has no representation of the delta; but this river and the several others tributary to the gulf are all mapped only at their mouths. What he meant for the Mississippi is more clearly indicated by the map sent to Spain by Cortes and published there in 1524, which shows the Rio del Espiritu Santo flowing through two lakes close to its mouth, evidently intended to represent Lakes Pontchartrain and Borgne. The same delineation of the Lower Mississippi is given also by the Turin map, of about the year 1523. Both these maps, doubtless based on information supplied by Pineda, display the course of the Mississippi above Lake Pontchartrain to a distance of apparently at least a hundred miles, where it is represented as formed by three confluent streams. Through questioning the Indians, he probably learned of the Red river, and of its northern tributary, the Black, which would be the two inflowing streams at nearly the distance mentioned from Pontchartrain.

The little ships of Pineda's expedition therefore must be supposed, according to these maps, to have entered the Mississippi by one of its

numerous outflowing navigable bayous, which, before the construction of levees, discharged a considerable part of the waters of the great river through Lakes Maurepas, Pontchartrain, and Borgne. The Indian town noted at the mouth of the river may have been at the mouth of the bayou, that is, on or near Lake Maurepas; or it may have been near the chief place of outflow from the main river, which was most probably then, as in recent times, at Bayou Manchac, 117 miles above the site of New Orleans by the course of the river, and 14 miles below Baton Rouge. There is no reason to distrust the statement that within six leagues thence up the Mississippi the Spaniards observed forty groups of temporary or permanent Indian dwellings. If the ships only entered the mouth of the bayou (or of the Amite river, through which the several bayous send their waters to the lake), being there careened and repaired, it is easy to infer that some of the Spaniards ascended the Amite and Bayou Manchac in small boats to the Mississippi, noted the width of that mighty stream, sounded its great depth, and reported its Indian villages. The delta, jutting out as a long cape, was neglected by Pineda in his mapping, which was accepted generally by cartographers. The chart of Vespucci's first voyage, more truthful as to this river's embouchure, had been lost and forgotten.

Harrisse, from a thorough study of records of Pineda's cruise, concludes that he came to the Mississippi in April or May, 1519, remained at the Indian town forty days, as stated, and went onward, exploring the coast of Louisiana and Texas, in June and July. He coasted beyond the Panuco river, but turned back when he reached the neighborhood of Vera Cruz, already occupied by Cortes. The next year Pineda again voyaged to the Panuco, with many men and horses, to establish a colony, in which endeavor he and most of his company were killed by the Indians.

The next expedition noting the Mississippi river was under the command of Pamphilo (or Panfilo) de Narvaez, for exploration and colonization of the country north of the Gulf of Mexico, from Florida westward nearly to the Panuco river, over which he had been given the title of governor. Grandly but ignorantly planned, this expedition was most utterly disastrous. Out of the three hundred men who began it, only Cabeza de Vaca, the historian of their shipwrecks and wanderings, with three others, survived to reach Spanish settlements.

In April, 1528, after a stormy voyage from Cuba, Narvaez landed on the west coast of Florida, probably at Tampa Bay. Amid great hardships, the expedition, mostly afoot, but having forty horses, marched through woods and swamps, crossed rivers, found an Indian town called Apalachen, and, finally turning back, came again to the sea, probably at the site of St. Mark's, about fifty miles east of the Appalachicola River. Not finding his ships, on which he expected to re-embark, Narvaez consulted his followers, and they decided, although destitute of tools, to construct boats and voyage westward along the coast. More than forty had died of disease and hunger, and ten had been killed within sight of their camp and boat-building, by arrows of Indian foes, before they embarked, late in September, reduced to the number of two hundred and forty-seven, in five frail vessels, to be propelled by oars, but also provided with sails. They had no adequate means to carry water, and consequently suffered terribly from thirst, as well as hunger. On the sea they were in great peril during storms; and on landing they were assailed by the Indians with stones and arrows.

About the end of October the wretched flotilla reached the Mississippi, of which Cabeza de Vaca wrote in his Relation, as translated by Buckingham Smith:

"My boat, which was first, discovered a point made by the land, and, against a cape opposite, passed a broad river. I cast anchor near a little island forming the point, to await the arrival of the other boats. The Governor did not choose to come up, and entered a bay near by in which were a great many islets. We came together there, and took fresh water from the sea, the stream entering it in freshet. To parch some of the maize we brought with us, since we had eaten it raw for two days, we went on an island; but finding no wood we agreed to go to the river beyond the point, one league off. By no effort could we get there, so violent was the current on the way, which drove us out, while we contended and strove to gain the land.

The north wind, which came from the shore, began to blow so strongly that it forced us to sea without our being able to overcome it. We sounded half a league out, and found with thirty fathoms we could not get bottom; but we were unable to satisfy ourselves that the current was not the cause of failure."

During the next week the boats, being rowed and drifted westward, were separated by storms; that of Narvaez may have foundered; others were driven ashore and wrecked. Those of the men who escaped from the sea mostly perished by hunger and cold, while some were enslaved by the Indians. Cabeza de Vaca was held in servitude on and near the island where he was wrecked, probably the island of Galveston, during about six years. Thence escaping, with two Spaniards and a negro of their company, he wandered across Texas, Chihuahua, and Sonora, securing the friendly aid of

the Indians all the way, and coming to Spanish settlements on the Pacific coast, near the mouth of the Gulf of California, at the end of March, 1536. The next year he returned to Spain, where his Relation was published in 1542. A map of his wanderings was made in Mexico for the viceroy, but it has not been preserved. No addition to the knowledge of the Mississippi was derived from this expedition.

Grandier, equally foolhardy, and scarcely less direful in its experiences, was the expedition of Hernando (Ferdinand) de Soto, similarly planned for discoveries, conquest, and the establishment of a colonial government. He attained to a possession of the country granted to him, but only by burial in its great river.

By a strange infatuation, Cabeza de Vaca, arriving in Spain, and being questioned by his kinsfolk, gave them the impression that Florida, then including a large region northwest of the peninsula, was "the richest country in the world." This was near the truth, if understood with reference to capabilities for agriculture; but the Spaniards pictured such wealth of gold and silver as had been recently plundered from Peru and Mexico. A soldier of fortune, De Soto, who was of noble lineage, formerly poor, but who had become suddenly rich with Pizarro from the spoils of Peru, was eager for greater wealth and power. Returning to Spain he secured appointment as governor of Cuba, with a commission to extend Spanish dominion over Florida and the country north of the Gulf of Mexico, where he was to be the feudal lord and governor. It was the same commission as that which had lured Narvaez to his death; but it was thought to be a sure passport to great wealth.

Many young gentlemen of the noblest families in Spain, and some from Elvas in Portugal, flocked to De Soto's standard. One of the Portuguese, whose name is unknown, wrote the narrative, published in 1557, which is our chief source of information concerning the route and history of the expedition. An English translation of this Relation of "A Gentleman of Elvas," made by Richard Hakluyt, was published in 1611, and was reprinted for the Hakluyt Society in 1851. Another translation, by Buckingham Smith, from which ensuing quotations are taken, was published in New York by the Bradford Club in 1866.

There were more volunteers than could be accepted; and after an exultant voyage to Cuba and thence to Florida, De Soto landed, with about

600 men and 213 horses, at Tampa Bay, May 30 (old style), 1539.

Almost two years were spent in marches through inhospitable forests and swamps, fording rivers, and fighting with many tribes of Indians, but finding nothing worth plundering. After much suffering in the winter camps, in the spring of 1541 the weary and wellnigh despairing expedition came to the Mississippi River, probably at the Lower Chickasaw Bluff (in Memphis, Tennessee, and extending ten miles down the east bank of the river), near the northwest corner of the present state of Mississippi, at the distance of about four hundred miles north of the Gulf, but twice as far by the tortuous watercourse. Armed Indians in two hundred canoes, coming from up the river, saluted the Spaniards, and the chief said to De Soto "that he had come to visit, serve, and obey him; for he had heard that he was the greatest of lords, the most powerful on all the earth." The Indians were doubtless treacherous; but here, as usual, the Spaniards were the first aggressors. When the canoes drew off from the shore, "the crossbow-men, who were in readiness," according to the Portuguese Relation, "with loud cries shot at the Indians, and struck down five or six of them."

Delay for thirty days was required in making four large boats to transfer the cavalry and foot soldiers across the river. Beginning one morning three hours before daybreak, by many trips to and fro, they had all crossed before the sun was two hours high, effecting this important movement without molestation by their vigilant Indian enemies. Wherever they marched, the poor native people were robbed, some of them were treacherously killed, and others, taken captive, were compelled to carry burdens, or otherwise to aid the invaders. The Relation says of this river, which it calls the Rio Grande: "The distance [to cross it] was near half a league: a man standing on the shore could not be told, whether he were a man or something else, from the other side. The stream was swift, and very deep; the water, always flowing turbidly, brought along from above many trees and much timber, driven onward by its force."

Nearly another year was spent in marches, exploration, and campaigning against the Indians, west of the Mississippi, and on April 17, 1542, De Soto came again to the Mississippi, at the Indian town of Guachoya, close below the mouth of the Arkansas river. There he sank into a deep despondency, worn out by the long series of disappointments and losses which had attended the whole course of his expedition; he became

sick with malarial fever; and on May 21 he died, after appointing Luis de Moscoso as his successor in command. To conceal his death from the Indians, the body, wrapped in blankets and heavily weighted with sand, was sunk in the middle part of the Mississippi. The new governor and leader, Moscoso, then told the chief of the Guachoya Indians that De Soto “had ascended into the skies, as he had done on many other occasions; but as he would have to be detained there some time, he had left him in his stead.”

Moscoso, after consulting the other officers, decided to march southwestward, hoping to reach Mexico; and half a year was lost in going far southwest, repenting, and returning to the Mississippi at an Indian settlement called Aminoya, where the Spaniards found a large quantity of maize, indispensable for their sustenance. This place was a short distance above Guachoya, and apparently above the mouths of the Arkansas and White rivers, on the same (west) side of the great river. Seven brigantines were there built, on which, July 2, 1543, the Spaniards, reduced to three hundred and twenty-two, embarked to go down the Mississippi, taking with them about a hundred Indian slaves to be sold if they should reach Spanish settlements. Two weeks were occupied in descending the river, by rowing and the aid of the strong current, covering a distance which was estimated as about 250 Portuguese or Spanish leagues. (From the mouth of the Arkansas to the Bayou Manchac, by the course of the Mississippi, is a distance of 446 miles, and to the present mouths of the delta, 672 miles.) The debouchure of the Mississippi was described as follows:

“When near the sea, it becomes divided into two arms, each of which may be a league and a half broad.... Half a league before coming to the sea, the Christians cast anchor, in order to take rest for a time, as they were weary from rowing.... [Here Indians came, in several canoes, for an attack.]... There also came some by land, through thicket and bog, with staves, having very sharp heads of fish-bone, who fought valiantly those of us who went out to meet them.... After remaining two days, the Christians went to where that branch of the river enters the sea; and having sounded there, they found forty fathoms depth of water. Pausing then, the Governor required that each should give his opinion respecting the voyage, whether they should sail to New Spain direct, by the high sea, or go thither keeping along from shore to shore.... It was decided to go along from one to another shore....

“On the eighteenth day of July the vessels got under weigh, with fair weather, and wind favorable for the voyage.... With a favorable wind they sailed all that day in fresh water, the next night, and the day following until vespers, at which they were greatly amazed; for they were very distant from the shore, and so great was the strength of the current of the river, the coast so shallow and gentle, that the fresh water entered far into the sea.”

Luis Hernandez de Biedma, a factor or agent for King Charles V, was a member of De Soto’s expedition, of which, after returning to Spain, he submitted a report in 1544. From the translation of that report, given by

Buckingham Smith in the same volume with this narrative of "The Gentleman of Elvas," we have the following considerably different description of what was thought to be the junction of the Mississippi with the gulf:

"We came out by the mouth of the river, and entering into a very large bay made by it, which was so extensive that we passed along it three days and three nights, with fair weather, in all the time not seeing land, so that it appeared to us we were at sea, although we found the water still so fresh that it could well be drunk, like that of the river. Some small islets were seen westward, to which we went: thenceforward we kept close along the coast, where we took shell-fish, and looked for other things to eat, until we entered the River of Panuco, where we came and were well received by the Christians."

By comparing Biedma's report with the Portuguese Relation, I am convinced that the brigantines did not pass down the Mississippi to its delta, but went out to the Gulf of Mexico by way of the Bayou Manchac, Lakes Maurepas, Pontchartrain and Borgne, and Mississippi Sound. In other words, Moscoso, with his squadron, took the same passage that Pineda had taken, in 1519, for his entering the Mississippi. Several points in the two narratives need now to be explained in detail, as to their harmony with this conclusion.

First, the Indians had villages near the Bayou Manchac; but probably there were no inhabitants near the true mouth of the river, at the end of the delta. Second, under this view, we must regard the Portuguese statement of a division of the river, into two arms or branches, as referring to the large outflow, at a time of flood, to the Atchafalaya River. Instead of receiving an inflow at the junction of the Red River, the flooded Mississippi there sent out a portion of its current, by the mouth of the Red, to the Atchafalaya; which also, when the Red is at a higher stage than the Mississippi, takes a part of the current of the former, carrying it south by a much shorter course to the Gulf. Third, another statement of the Relation, noting the great depth of forty fathoms where their branch of the river "enters the sea," must be then interpreted as found in the bend of the Mississippi from which the Bayou Manchac flows away.

In its condition of a high flood, the river there opens toward a vast expanse of water, called, by the narrator, "the sea," reaching east over Lake

Maurepas and onward to the Gulf. It seems indeed not unlikely that the Mississippi at that place may have then had even so great a depth; for in a sharp curve at New Orleans it was once found by the Mississippi River Commission to have a sounding of 208 feet. On the large scale maps recently published by the Commission, the maximum depth of the river close to the departure of the Bayou Manchac is noted as 145 feet; and in the sharp bend in the east part of New Orleans, 188 feet.

Sailing on the wide Lakes Pontchartrain and Borgne, with the very low lands inclosing the latter probably then submerged, Moscoso and his men would regard all that expanse of fresh water, reaching from the Bayou Manchac nearly a hundred miles east to the Mississippi Sound, as “a very large bay” of the sea. They would consequently be surprised at the very long distance to which the Mississippi sent its waters without their becoming salt; whereas even the greatest floods could not freshen the sea very far out from the mouths of the delta. The Portuguese Relation says that the Mississippi, before the departure from Aminoya, had risen, in such a high flood, to the ground at the town, where the brigantines were built, floating them; and we may infer, with good assurance, that the same flood continued, at nearly its full height, through the next two weeks, till July 16, when they came to Bayou Manchac and the vast fresh water expanse stretching thence far to the east.

Fifty-two days were spent in slow coasting, with frequent landings, and long delays for storms and to provide shell-fish for food, between the Mississippi and the Panuco River, which was entered September 10, 1543; and there the Spanish town of Panuco welcomed the surviving three hundred and eleven of De Soto’s men.

Looking back over the history of this expedition and its results, we see that little was gained for geographic knowledge, and nothing for the honor of Spain or the extension of her colonies. With the clearer light which now enables all civilized nations to recognize the great truth of the brotherhood of all mankind, we are pained to read, throughout this narrative, of the wanton cruelties, murderous warfare, dishonesty and shameless perfidy, with which the Indians were treated by De Soto and his men from the beginning to the end of their expedition. These men were the finished product of medieval chivalry; they had mostly an inordinate self-esteem; and they called themselves Christians, and De Soto died with

Christian serenity, in penitence and faith; but in their conduct toward the savages every Christian or humane sentiment was sacrificed to the love of gold and self-advancement. The first white men to voyage far on the Mississippi, and to deal largely with its native people, deemed them outside the pale of human sympathy or mercy.

No geographer, nor expert draftsman for mapping, appears to have been enlisted by De Soto in his grand company of followers. But soon after the expedition was disbanded in Mexico, testimony of those who came back to Europe was taken by some unknown compiler as the basis for a revised map of the "Gulf and Coast of New Spain." This map, preserved at Madrid in the Archives of the Indies, was lately ascribed to the year 1521, in the exhibition sent by Spain to the Columbian Exposition in Chicago in 1893. It is reproduced by Harrisse in his great work, *The Discovery of North America*, and is proved by him to belong to the end of 1543 or some later date. It shows the Atlantic and Gulf coasts, from Georgia to the Panuco river, and extends inland as far as the country was known, however vaguely, from the explorations of De Soto and Moscoso. The ultimate sources of the Mississippi river, called by Biedma and on this map the Espiritu Santo, are placed on the northwestern flank of the Appalachian mountain belt, due north of Tampa Bay. Thence two streams, meant for the Tennessee and Cumberland (or perhaps Ohio) rivers, of which De Soto had accounts from the Indians, flow west and unite to form the Espiritu Santo, near whose west bank, close below the confluence of a large tributary from the northwest, is Guachoya, the place of De Soto's death. Many other names are also noted, mostly of towns or districts of Indian tribes, derived from his expedition. No indication of the Ohio (probably) nor the Missouri, nor of the Red river as a tributary of the Mississippi, is given by this map. Its northern boundary, beyond which it has only blank space, is at the supposed Cumberland river, and at the mountains adjoining the sources of the northwestern tributary, that is, the Arkansas river. The Mississippi empties into the Vaya (Bay) del Espiritu Santo, which is also called Mar Pequeña (Little Sea), taking the place of the lakes north of New Orleans, and thus confirming my conclusions as to Moscoso's passage into the Gulf. Excepting the long tributaries from the northeast, no greater prominence is given to the Mississippi than to several others of the many rivers pouring into the Atlantic and the Gulf along all this coast.

Here cartography rested during a hundred and thirty years. The next contribution from exploration of the Mississippi was by Marquette's map in 1673.

These studies, indicating that Pineda and Moscoso came and went through the large lakes north of New Orleans, answer the question asked by Dr. Walter B. Scaife in 1892, doubting that Pineda entered the Mississippi, and considering instead that the Rio del Espiritu Santo on the maps sent to Spain by Garay and Cortes represents Mobile River and Bay. This view is elaborately stated by Scaife in the Johns Hopkins University *Studies in Historical and Political Science*, Vol. XIII (Supplement, pages 139–176). Among other historians who have adopted this view are Peter J. Hamilton (in *Colonial Mobile*, 1897), and Prof. Alcée Fortier, president of the Louisiana Historical Society (in *A History of Louisiana*, 1904). But their difficulties and objections against identifying the Mississippi as the great river where Pineda careened and repaired his vessels are removed by his coming through Lakes Pontchartrain and Maurepas.

Not until a hundred and eighty years later, in 1699, have we any historic records of entry or departure through the delta mouths of the Mississippi. Then, on the second day of March, Iberville and Bienville, brothers destined to become illustrious by founding the French colony of Louisiana, entered the eastern mouth of the delta with rowing boats; and in September a small English frigate entered one of the mouths and ascended the river to "English Turn," a great bend ten miles below the site of New Orleans.

WARREN UPHAM.

ST. PAUL, MINN.

(To be continued.)



THE RECORD OF REDDING

Mr. Grumman has produced a wholly novel and unique work^[1] of a character never before attempted so far as we are aware. It is a record of the services and sufferings of the Revolutionary patriots of a Connecticut town, which through its sons made history and influenced public opinion in a much greater degree than its position and importance would have promised. It is a record also of the loyalists of the town, who suffered even more for their King and Cause than did the patriots, since defeat and banishment with confiscation of their estates was their final portion.

Redding (formerly written Reading) is one of the “hill towns,” of Connecticut, seven miles from Danbury and thirteen from Bridgeport, the two “shire towns,” of Fairfield County. Its people have always been noted for brain force and intelligence. The number of its sons who have won high places in the professions, in art, literature, diplomacy, the army and navy is something remarkable. At the outbreak of the Revolution it was the seat of a polite and learned society far superior to that of the average country town of the day.

Mr. Grumman divides his book into two parts—“Military History,” (a terse and simple account of the campaigns in which Redding soldiers figured, with incidents) and “Revolutionary Soldiers and Patriots of Redding,” a series of biographies which is the larger and more valuable portion of the work. In Part I he first sketches in sharp outline the two opposing forces which the troubles with England created in Redding as elsewhere—the patriots and tories. The former organized their “American Association,” the latter—very numerous and respectable in Redding—formed their “Redding Loyalist Association,” (perhaps the first of the kind in America), in February, 1775.

“In the present critical situation of publick affairs,” to quote its preamble this Association adopted a set of “Resolves” which were published in James Rivington’s *Gazette* for Feb. 23, 1775, as follows:—

First. Resolved, That while we enjoy the privileges and immunities of the British Constitution we will render all due obedience to his most Gracious Majesty King George the Third, and that a firm dependence on the Mother Country is essential to our political safety and happiness.

Second. Resolved, That the privileges and immunities of this Constitution are yet (in a good degree) continued to all his Majesty’s American subjects, except those who, we conceive, have justly forfeited their right thereto.

Third. Resolved, That we supposed the Continental Congress was constituted for the purpose of restoring harmony between Great Britain and her colonies and removing the displeasure of his Majesty toward his American subjects, whereas on the contrary some of their resolutions appear to us immediately calculated to widen the present unhappy breach, counteract the first principles of civil society, and in a great degree abridge the privileges of their constituents.

Fourth. Resolved, That notwithstanding we will in all circumstances conduct with prudence and moderation we consider it an indispensable duty we owe to our King and Constitution, our Country and posterity, to defend, maintain and preserve at the risk of our lives and properties the prerogatives of the Crown, and the privileges of the subject from all attacks by any rebellious body of men, any Committees of Inspection, Correspondence, &c.

(“Signed by one hundred and forty one Inhabitants whose names are to be seen at the Printer’s.”—adds Rivington.)

The effect of this document on the patriots of Redding was like that of a red rag on a bull. They at once set to work to discover its signers and presently made public in a circular the entire list so far as they belonged in Redding. It was given out by the Committee of Observation under this preamble.

“WHEREAS, There was a certain number of resolves published—and whereas said Resolves are injurious to the rights of this Colony and breathe a spirit of enmity and opposition to the rights and liberties of all

America and are in direct opposition to the Association of the Continental Congress: and notwithstanding said resolutions were come into with a (seeming) view to secure the said signers some extraordinary privileges and immunities, yet either through negligence in the printer or upon design of the subscribers, said signed names are not made publick—and now if there be any advantage in adopting those principles we are willing they should be entitled there to; and for which end and for the more effectual carrying into execution said Association we have taken some pains and by the assistance of him who carried said resolves to said Printer we have obtained the whole of said names. But as we mean not to publish the names of any except those who belong to said Reading, their names are as follows.”

Some seventy-four names follow, and then this note:

“There are only forty two Freeholders in the above number; there are several minors, &c., to make the above number of seventy four that belong to said Reading, and we hereby hold them up to the publick as opposers to the Association of said Congress.

Signed by order of the Committee of Observation for said Town of Reading.

EBENEZER COUCH,
Chairman.”

The Loyalist Association met this challenge by boldly publishing in Rivington’s *Gazette* the entire list of signers, and the battle began. The course of events very soon brought many of the loyalist signers into hearty accord with the patriots, as Mr. Grumman shows, but those who persisted were treated with such severity that they fled to the forests and caves, where they were concealed until they could escape to the British lines.

Free Masons will be interested in Mr. Grumman’s account of the making of American Union Lodge, among the officers of the Continental Line while the right wing of the Continental Army lay in winter quarters in Redding, 1778–9. “During the siege of Boston,” he says, “the meetings of the Grand Lodge ... were suspended and a commission was granted by John Rowe (the successor of Gen. Joseph Warren as Grand Master), to Col. Joel Clark of the Connecticut troops to establish a lodge within the army, which was to hold its meetings whenever convenient as the army moved from

place to place.” This lodge was to be designated “The American Union Lodge.” It was accordingly organized, but the change of base to New York and the stirring events which followed seem to have prevented further meetings. Its Master, Col. Clark, died after the Long Island campaign and the Lodge appears to have lapsed until the encampment at Redding brought the Connecticut officers together with leisure to renew their fraternal relations. For this purpose the Lodge was convened early in February, in conformity to the following notice:

“On the application of a number of gentlemen, brethren of the Ancient and Honorable Society of Free and Accepted Masons, to the members of American Union Lodge held by authority under the Right Worshipful John Rowe Esq. Grand Master of all Masons in North America, where no Grand Master is appointed, requesting that the said American Union Lodge meet for the purpose of re-establishing the Ancient Craft in the same. Agreeable to which a summons was issued desiring the members of the American Union Lodge to meet at Widow Sanford’s, near Reading Olde Meeting House, on Monday the 15th of inst. February at 4 o’clock post m. and an invitation sent to the others, the brethren of the Ancient and Honorable Society of Free and Accepted Masons to attend at 5 o’clock Post m.

JONATHAN HEART,
Secretary.”

At this first meeting Gen. Samuel H. Parsons was elected Master in place of Col. Clark, deceased.

Several meetings of the Lodge were held while the Army lay at Redding, two of which were attended by Washington (though Mr. Grumman does not note the fact). On March 22 it held a dinner at Esq. Hawley’s, “the Rev. Dr. Evans and a number of gentlemen and ladies being present,” and a “Grand Banquet” on April 7th, four days before orders came for the Army to prepare to leave. A very full account of this is given by Mr. Grumman in a quotation from the Lodge records:

It having been voted to dine at three o’clock, at half past one the procession began as follows:

1. Br. Whitney, Outside Tyler.
2. The Wardens with white rods.

3. The youngest Brother with the Bag.
4. The Brethren by Juniority.
5. The W. Master with his Rod.

The Treasurer on his right hand supporting the Sword of Justice: the Secretary on his left supporting the Bible, Square, and Compasses.

6. Br. Peck, the Inside Tyler. Music advanced playing the Entered Apprentice March.

The W. Master and Brethren having seated themselves together with a number of respectable Inhabitants, gentlemen and ladies, the Rev. Doct. Evans delivered a discourse suitable to the occasion.

After dinner the W. Master called on Bro. Munson and others for songs and sentiments when the company were favored with the following, each song and toast being enlivened with appropriate music.

Song by Bro. MUNSON	<i>Watery Gods</i>
Toast	<i>Health of Congress</i>
Music	<i>Grenadier's March</i>
Song by Bro. MUNSON	<i>Elegy on Gen. Wolfe</i>
Toast	<i>Arts and Sciences</i>
Music	<i>Dead March</i>
Mason's Song by Bro. REDFIELD	
Toast	<i>The Good and Just</i>
Music	<i>Prince Eugene</i>
Song by Bro. MUNSON	<i>Colin and Phebe</i>
Toast	<i>The Ladies of America</i>
Music	<i>Country Jig</i>
Song on Masonry by Bro. MARSHALL Music	<i>Splendor of the Morning</i>
Song by Bros. MUNSON and MARSHALL	<i>The Tempest</i>
<i>With Jack the Seaman to conclude.</i>	

At six o'clock the procession returned to the Lodge room and the Lodge being opened it was,

"Voted, That the thanks of the lodge be presented in writing to the Rev. Doct. Evans for his polite address and sentiments delivered this day, and that Bro. Waldo wait on him with the same; also that Bro. Waldo present our thanks to the Rev. Mr. Bartlett and to the other gentlemen and ladies who favored the lodge with their company at dinner."

Todd, in his History of Redding gives one of the songs sung on this occasion.

But it is in his biographical record of the patriots and loyalists of Redding that Mr. Grumman's book is most original and valuable. There are one hundred pages of these, compiled with an accuracy and fullness surprising to one who realizes the paucity of material of this sort now extant and the difficulty of securing it.

Joel Barlow, poet, statesman, and earlier, Chaplain in the Army was one of the most distinguished of these. Mr. Grumman has a very interesting extract from the diary of the Rev. Eleazer Wheelock, dated Sept. 14, 1773, regarding young Joel's matriculation at Moor's preparatory school in Hanover, N. H., not given by any of the poet's biographers so far as we are aware.

"Mr. Samuel Barlow of Reading, Mass, (Ct.?) brings his son Joel to school. The said son is to officiate as waiter on table at meal time and also to be at the beck of Miss Elizabeth: only in play time and vacations to perform such errands and incidental service as she shall have occasion for in her business, and in consideration of her services and his to have his board, viz: eating, drinking, washing, firewood, candles, study room and tuition."

This Miss Elizabeth Burr was of Fairfield, Conn., near Reading, and came to have charge of Joel, and to "superintend the cooking in commons and manage the prudentials of it." She was probably a relative and did this to aid the boy in getting an education, his father having a family of ten to provide for.

A typical Reading patriot was the Rev. Nathaniel Bartlett who served the Congregational Church there as pastor for fifty-seven years, and who when hostilities broke out brought his sword, freshly ground, to his son Daniel, and bade him go and defend his country. Another was Lemuel Sanford, who represented Redding at twenty-two sessions of the General Assembly, covering a period of twenty years, served on numerous committees and died a Judge of the County Court.

The greatest patriot of all, and one of the greatest of the historic struggle, William Heron, Mr. Grumman places among the loyalists. This man was an Irishman, born in Cork in 1742, of good family and educated at Trinity College, Dublin. He was the intimate personal friend of Lord Howe,

and the friend and trusted adviser of Washington and Putnam. Howe's well known leniency toward the Americans was perhaps due to him, and the minute knowledge the patriot chiefs had of the British forces, and the plans of their leaders came largely from him. He was a shrewd, tactful, forceful, brilliant man with all an Irishman's power of blarney, and hating the British as a loyal Irishman should, he yet hoodwinked Sir Henry Clinton, and his Adjutant General, Major Oliver DeLancey, into the belief that he was secretly an adherent of the British cause, and could give them valuable information. For years—with the full knowledge of Washington and Putnam—he maintained a correspondence with them, was allowed to come into the city of New York, was dined and wined by them, went freely about the city, and obtained information of the greatest value to the patriot leaders. What information he gave the British in return was either of no great importance, or would have come to them by some other channel. In Clinton's "Record of Private Intelligence," discovered in London in 1882, and purchased by Dr. Thomas Addis Emmet,^[2] there are several letters from this man, some of them implicating Major General Samuel H. Parsons, of Connecticut, in treasonable intercourse with the British, but this was only a part of the plot. The career of Heron during the eight years of the war would furnish material for a dozen historical romances. Mr. Grumman prints a letter from Parsons to Washington, dated Apr. 6, 1782 in which he says of him:

"He is a native of Ireland, a man of very large knowledge, and a great share of natural sagacity united with a sound judgment, but of as unmeaning a countenance as any person in my acquaintance. With this appearance he is as little suspected as any man can be. An officer in the department of the Adjutant General is a countryman and very intimate acquaintance of Mr. Heron, through which channel he has been able frequently to obtain important and very interesting information."

Parsons adds that he knows him to be a consistent National Whig, always in the field in every alarm and in every trial proving himself a man of bravery. Corroborative proof of this view is found in the fact that after the war, instead of being run off to Nova Scotia with the other loyalists, Heron represented Redding in seventeen sessions of the General Assembly, and was given other offices of importance by his townsmen.

A typical loyalist of Redding was John Lyon, a farmer and business man, who owned one hundred acres of land in the town with two houses thereon, beside a half interest in a schooner and much merchandise. This man not only signed the "Reading Resolves," but carried them to Rivington, the King's Printer in New York, who printed them. For this act in March, 1775, he was seized by a mob, ill treated and robbed, and his merchandise at Mill River (now Southport) to the value of five hundred pounds was also seized. The persecution continued until he was obliged to fly to the British lines, where he entered the King's service, aided in raising the "King's Rangers," a loyalist regiment, and acted as guide during the war. At the close of the war he fled to Nova Scotia with his wife and two sons and settled at Kingston.

In his memorial to the King from which the above facts are taken, he estimates his losses at £1,790, and was allowed £290 in satisfaction (?) thereof.

CHARLES BURR TODD.

BETHEL, CONN.



CIVIL WAR SKETCHES.

II. CONFEDERATE FINANCE IN ALABAMA

SPECIAL APPROPRIATIONS AND SALARIES.

Besides the regular appropriations for the usual expenses of the government, there were many extraordinary appropriations. These, of course, were the war expenses and were far greater than the ordinary expenses. The chief item of these extraordinary appropriations was for the support of the indigent families of soldiers, and for this purpose about \$11,000,000 was provided. For the military defense of the State several million dollars were appropriated, much of this being spent for arms and clothing for the Alabama troops, both in the Confederate and the State service. Money was granted to the University of Alabama and other military schools on condition that they furnish drill masters for the State troops without charge. Hospitals were furnished in Virginia and in Alabama for the Alabama soldiers. The gunboat *Florida* was bought for the defense of Mobile, and \$150,000 was appropriated for an ironclad ram for the same purpose. Loans were made to commanders of regiments to buy clothing for their soldiers, and the State began to furnish clothing, \$50,000 being appropriated at one time for clothing for the Alabama soldiers in Northern prisons. By March 12, 1862, Alabama had contributed \$317,600 to the support of the army of Northern Virginia.^[3] Much was expended in the manufacture of salt in Alabama and in Virginia, which was sold at cost or given away to the poor; in the purchase of salt from Louisiana to be sold at a low price, and in bounties paid to salt-makers in the State who sold salt at

reasonable prices. The State also paid for medical attendance for the indigent families of soldiers. When the records and rolls of the Alabama troops in the Confederate service were lost, money was appropriated to have new ones made. Frequent grants were made to the various benevolent societies of the State whose object was to care for the maimed and sick soldiers, and the widows and orphans. Cotton and wool cards and agricultural implements were purchased and distributed among the poor. Slaves and supplies were taken for the public service and the owners compensated.

The appropriations for the usual expenses of the government were light, seldom more than twice the appropriations in times of peace, notwithstanding the depreciated currency. The public officers who received stated salaries ranged from \$1,500 to \$4,000 a year in State money. In 1862, the salaries of the professors in the State University were doubled on account of the depreciated currency, the president receiving \$5,000 and each professor \$4,000.^[4] The members of the General Assembly were more fortunate. In 1864, they received \$15 a day for the time in session, and the clerks of the Legislature, who were disabled soldiers or exempt from service, or were women, were paid the same amount. The salt commissioners drew salaries of \$3,000 a year in 1864 and 1865, though this amount was not sufficient to pay their board for more than six months. Salaries were never increased in proportion to expenses. The compensation, in December, 1864, for capturing a runaway slave was \$25, worth probably 50 cents in coin. For the inaugural expenses of Governor Watts in 1863, \$500 in paper was appropriated.^[5] Many laws were passed regulating and changing the fees and salaries of public officials. In October, 1864, for example, the salaries of the State officials, tax assessors and collectors, and judges were increased 50%. Besides the general depreciation of the currency, the variations of values in the different sections of the State rendered such changes necessary. In the central part, which was safe for a long time from Union raids, the currency was to the last worth more, and the prices of the necessities of life were lower, than in the more exposed regions. This fact was taken into consideration by the Legislature when fixing the fees of the State and county officers in the various sections.

TAXATION.

As a result of the policy adopted at the outset of meeting the extraordinary expenses by bond issues,^[6] the people continued to pay the light taxes levied before the war, and paid them in paper money. Though falling heavily on the salaried and wage-earning classes, it was never a burden upon the agricultural classes, except in the poorest white counties. The poll tax brought in little revenue. Soldiers were exempt from its payment and from taxation on property to the amount of \$500. The widows and orphans of soldiers had similar privileges. A special tax of 25% on the former rate was imposed on all taxable property in November, 1861, and a year later, by acts of December 9, 1862, a far-reaching scheme of taxation was introduced. Under this poll taxes were levied as follows:

White men, 21 to 60 years	\$0 75
Free negro men, 21 to 50 years	5 00
Free negro women, 21 to 45 years	3 00
Slaves (children to laborers in prime)	\$0 50 to 2 00
More valuable slaves	\$2 00 and up

And other taxes as follows:

Crop liens	33⅓%
Hoarded money	1%
Jewelry, plate, furniture ½%	
Goods sold at auction	10%
Imports	2%
Insurance premiums (companies not chartered by State)	2%
Playing cards, pack	\$1 00
Gold watches, each	1 00
Gold chains, silver watches, clocks	50
Articles raffled off	10%
Legacies, profits and sales, incomes	5%
Profits of Confederate Contractors	10%
Wages of Confederate officials	10%
Race tracks	10%
Billiard tables, each	\$150 00
Bagatelle	20 00
Ten-pin alleys, each	40 00
Readings and Lectures, each	4 00
Peddler	100 00
“Spirit rapper,” per day	500 00
Saloon Keeper	\$40 to 150 00
Daguerreotypist	10 to 100 00
Slave trader, for each slave offered for sale	20 00

In 1863 a tax of 37½% was laid on Confederate and State bonds not in the hands of the original purchasers;^[7] 7½% was levied on profits of banking, railroad companies, and on evidence of debt; 5% on other profits not included in the act of the year before. The tax on gold and silver was to be paid in gold and silver; on bank notes, in notes; on bonds, in coupons.^[8] In December 1864, the taxes levied by the laws of 1862 and 1863 were increased by 33⅓%. Taxes on gold and silver were to be paid in kind or in

currency at its market value.^[9] This was the last tax levied by the State under Confederate rule. From these taxes the State government was largely supplied.

A number of special laws were passed to enable the county authorities to levy taxes-in-kind or to levy a certain amount in addition to the State tax, for the use of the county. The taxes levied by the State did not bear heavily upon the majority of the people, as nearly all, except the well-to-do and especially the slave owners, were exempt. The constant depreciation of the currency acted, of course, as a tax on the wage earners and salaried classes and on those whose income was derived from government securities.

While the State taxes were felt chiefly by the wealthier agricultural classes and the slave owners, this was not the case with the Confederate taxes. The loans and gifts from the State, the war tax of August 19, 1861, the \$15,000,000 loan, the Produce Loan, and the proceeds of sequestration—all had not availed to secure sufficient supplies. The Produce Loan of 1862 was subscribed to largely in Alabama, the secretary of the Treasury issuing stocks and bonds in return for supplies,^[10] and \$1,500,000 of the \$15,000,000 loan was raised in the State. Still the Confederate government was in desperate need. The farmers would not willingly sell their produce for currency which was constantly decreasing in value, and, when selling at all, they were forced to charge exorbitant prices because of the high prices charged them for everything by the speculators.^[11] The speculator also ran up the prices of supplies beyond the reach of the government purchasing agents, who had to buy according to the list of prices issued by impressment commissioners. So in the spring of 1863, all other expedients were cast aside and the Confederate government levied the most drastic sort of a tax. No more loans of paper money from the State, no more assumption of war taxes by the State because the people were opposed to any form of direct taxation, no more holding back of supplies by producers and speculators who refused to sell to the Confederate government except for coin—the new law stopped all that.^[12]

First there was a tax of 8% on all agricultural products in hand on July 1, 1863, on salt, wine and liquors, and 1% on all money and credits. Second, an occupation tax ranging from \$50 to \$200 and from 2½% to 20% of their gross sales was levied on bankers, auctioneers, brokers, druggists,

butchers, “fakirs,” liquor dealers, merchants, pawn-brokers, lawyers, physicians, photographers, brewers, and distillers; hotels paid from \$30 to \$500 and theatres, \$500. Third, there was an income tax of 1% on salaries from \$1,000 to \$1,500 and 2% on all over \$1,500. Fourth, 10% on all trade in flour, bacon, corn, oats, and dry goods during 1863. Fifth, a tax-in-kind, by which each farmer after reserving 50 bushels of sweet and 50 bushels of Irish potatoes, 20 bushels of peas or beans, 100 bushels of corn or 50 bushels of wheat out of his crop of 1863, had to deliver (at a dépôt within eight miles,) out of the remainder of his produce for that year, 10% of all wheat, corn, oats, rye, buckwheat, rice, sweet and Irish potatoes, hay, fodder, sugar, molasses, cotton, wool, tobacco, peas, beans, and peanuts; 10% of all meat killed between April 24, 1863 and March 1, 1864; and 1% of the horses, mules and cattle held on November 1, 1863.^[13]

By this act \$9,500,000 in currency was raised in Alabama. Alabama, with Georgia and North Carolina, furnished two-thirds of the tax-in-kind. Though at first there was some objection to this tax because it bore entirely on the agricultural classes, yet it was a just tax so far as the larger planters were concerned, since the depreciated money had acted as a tax on the wage-earners and salaried classes, who had also some State tax to pay. The tax-in-kind fell heavily upon the families of small farmers in the white counties, who had no negro labor, and who produced no more than the barest necessities of life. To collect the tax required an army of tithe-gatherers, and afforded fine opportunities of escape from military service. The State was divided into districts for the collection of all Confederate taxes, with a State collector at the head. The collection districts were usually counties, following the State division into taxing districts. In 1864, the tobacco tithe was collected by Treasury agents and not by the quartermaster’s department, which had formerly collected it.^[14] The tax of April 24, 1863, was renewed on February 17, 1864, and some additional taxes laid as follows:

Real estate and personal property	5%
Gold and silverware and jewelry	10%
Coin	5%
Credits	5%
Profits on liquors, produce, groceries and dry goods	10%

On June 10, 1864, an additional tax of 20% of the tax for 1864 was laid, payable only in Confederate Treasury notes of the new issue. Four days later an additional tax^[15] was levied as follows:

Real estate and personal property and coin	5%
Gold and silver ware	10%
Profits on liquors, produce, groceries & dry goods	30%
Treasury notes of old issue (after January, 1865)	100%

The taxes during the war, State and Confederate, were in all five to ten times those levied before the war. Never were taxes paid more willingly by most of the people,^[16] though at first there was opposition to them. It is probable that the authorities did not in 1861 and 1862 give sufficient consideration to the fact that conditions were much changed, and that in view of the war the people would willingly have paid taxes that they would have rebelled against in times of peace.

Of the tax-in-kind for 1863, \$100,000 was collected in Pickens county alone, one of the poorest in the State. The produce was sent in too freely to be taken care of by the government quartermasters, and, as there was enough on hand for a year or two, much of it was ruined for lack of storage room.^[17] An English traveller in East Alabama in 1864 reported that there was abundance; that the tax-in-kind was working well, and that enough provisions had already been collected for the Western armies of the Confederacy to last until the harvest of 1865.^[18] There were few railroads in the State and the rolling stock on these was scarce and soon worn out. So the supplies gathered by the tax-in-kind law could not be moved. Hundreds of thousands of pounds of beef and bacon, and bushels of corn were piled up in the government warehouses and at the dépôts, while starvation threatened the armies and the people also in districts remote from the railroads or rivers. At the supply centers of Alabama and along the railroads in the Black Belt there were immense stores of provisions. When the war ended, notwithstanding the destruction by raids, great quantities of corn and bacon were seized or destroyed by the Northern troops.^[19]

IMPRESSMENT.

The State quite early began to secure supplies by impressment. Salt was probably the first article to which it laid claim. Later the officials were authorized to impress and pay for supplies necessary for the public service. In 1862, the Governor was authorized to impress shoes and leather, and other shoemakers' materials for the use of the army. The Legislature appropriated \$250,000 to pay for impressments under this law.^[20] In case of a refusal to comply with an order of impressment, the sheriff was authorized to summon a *posse comitatus* of not less than twenty men and seize double the quantity first impressed. In such cases no compensation was given.^[21] The people resisted the impressment of their property. By a law of October 31, 1862, the Governor was empowered to impress slaves, and tools and teams for them to work with, in the public service against the enemy, and \$1,000,000 was appropriated to pay the owners.^[22] Slaves were regularly impressed by the Confederate officials acting in co-operation with the State authorities, for work on fortifications and for other public service. Several thousand were at work at Mobile at various times. They were secured usually by requisition on the State government, which then impressed them. In December, 1864, Alabama was asked for 2,500 negroes for the Confederate service.^[23] The people were morbidly sensitive about their slave property and there was much discontent at the impressment of slaves even though they were paid for. As the war drew to a close, the people were less and less willing to have their servants impressed.

In the spring of 1863, the Confederate Congress authorized the impressment of private property for public use.^[24] The Confederate President and the Governor each appointed an agent, and these together fixed the prices to be paid for the property taken.^[25] Every two months they published schedules of prices, which were always below the market prices.^[26] Evidently impressment had been going on for some time, for, in November, 1862, Judge Dargan, member of Congress from Alabama, wrote to the President that the people from the country were afraid to bring produce to Mobile for fear of seizure by the government. In November, 1863, the Secretary of War issued an order that no supplies should be impressed when held by a person for his own consumption or that of his employees or slaves, or while being carried to market for sale, except in urgent cases and by order of a commanding general. Consequently the land was filled with agents buying a year's supply for railroad companies, individuals, manufactories, and corporations, relief associations, towns, and

counties—all these to be protected from impressment. Most speculators always had their goods “on the way to market for sale.” The great demand caused prices to rise suddenly, and the government, which had to buy by scheduled prices, could not compete with private purchasers; yet it could not legally impress. There was much abuse of the impressment law, especially by unauthorized persons. It was the source of much lawless conduct on the part of many who claimed to be Confederate officials, with authority to impress.^[27] The Legislature frequently protested against the manner of execution of the law. In 1863, a State law was passed which indicates that the people had been suffering from the depredations of thieves who pretended to be Confederate officials in order to get supplies. It was made a penal offense in 1862 and again in 1863, with from one to five years’ imprisonment and \$500 to \$5,000 fine, to falsely represent oneself as a Confederate agent, contractor or official.^[28] The merchants of Mobile protested against the impressment of sugar and molasses; it would cause prices to double, they said.^[29] There was much complaint from sufferers who were never paid by the Confederate authorities for the supplies impressed. Army quartermasters would sometimes seize the necessary supplies and would leave with the army before settling accounts with the citizens, the latter often being left without any proof of their claim. In North Alabama, especially, where the armies never tarried long at a place, the complaint was greatest. To do away with this abuse resulting from carelessness, the Secretary of War appointed agents in each Congressional district to receive proof of claims for forage and supplies impressed.^[30] The State wanted a Confederate law passed to authorize receipts for supplies to be given as part of the tax-in-kind.^[31] The unequal operation of the impressment system may be seen in the case of Clarke and Monroe counties. In the former, from sixteen persons, property amounting to \$1,700 was impressed. In Monroe, from thirty-seven persons, \$60,000 worth was taken. The delay in payment was so long that it was practically worthless when received.^[32]

(Concluded next month.)



THE LIBERTY OF THE PRESS IN THE AMERICAN COLONIES BEFORE THE REVOLUTIONARY WAR, WITH PARTICULAR REFERENCE TO CONDITIONS IN THE ROYAL COLONY OF NEW YORK.

CHAPTER I THE PRESS IN ENGLAND BEFORE THE NINETEENTH CENTURY

Immediately on the introduction of printing the Church assumed towards it an attitude at once intimate and watchful. Since all that affected the welfare of the mind and the health of the soul was of importance to the Church, it was not at all surprising that the demand was at once made that nothing should be put forth by the press save that which had received the sanction—the “Imprimatur”—of the Diocesan authority, or later of the official delegated by the personal representative of the Papacy. The rules that were laid down for the direction of the printer were full and explicit, and no resistance seems to have been attempted at the period of the Reformation in England, the power of supervision over all forms of printing passed from the hands of the Church to the civil authority. This followed naturally from the theory that the King, as Head of the Church, inherited all rights of oversight in matters of opinion and morals formerly pertaining to the Pope, and exercised in England by the Bishops in his name. The Henrician and Elizabethan Bishops still gave the “Imprimatur,” but it was now as representing the King. The fact of publication without authority was in itself a crime deserving of severe punishment.^{[\[33\]](#)}

A further step in the restriction of printing was the establishment (in line with the general tendencies of the time), of monopolies by patent. In 1557 the Stationers' Company was formed of ninety-seven London stationers, and to it was committed the sole right to print books licensed by the proper authority.^[34] As representing the Sovereign, the Star Chamber exercised a supervision over the manner in which the law was carried out; in 1559 it ordered that all books were to read by a Bishop or a member of the Privy Council before going to the press, and in 1586 gave permission for a printing press to be set up in each University, the licenser in this case being the Vice Chancellor. In the same year the Star Chamber ordered that all books were to be read and licensed by the Archbishop of Canterbury or the Bishop of London, with the exception of law books which were to be read by the Chief Justice of either Bench or the Lord Chief Baron.

Proclamations issued by Queen Elizabeth from time to time,^[35] indicate the difficulty found in enforcing this monopoly and requirement of licensing, and a proclamation issued by Elizabeth^[36] against "bringing into the realm unlawful books" indicates that the statute of Henry VIII^[37] repealing the permission given in the reign of Richard III to import books from abroad^[38] was being systematically disregarded. Attorney-general Popham gives witness to the same effect when in his speech before the Star Chamber in the prosecution of Sir R. Knightley and others he says, "Her Majesty Queen Elizabeth, in her great wisdom, hath issued proclamations that no pamphlets or treatises should be put in print but such as should first be seen and allowed; and further, lest that were not sufficient, she ordained that no printing should be used anywhere but in London, Oxford, or Cambridge. Notwithstanding all this served not, but they would print in corners and spread abroad things unprinted: wherefore Her Majesty set forth a proclamation *in anno* 25 that all Brownist books, and such other seditious books should be suppressed and burnt."^[39]

The Star Chamber continued to exercise control over printing during the reign of James I, but with increasing difficulty, not lessened by the arbitrary and cruel ways in which it acted towards those whom it believed to be breaking its rules and regulations. The flood of books printed abroad continued into the reign of Charles I, and in 1637 we find a Star Chamber decree, "for reducing the number of master-printers, and punishing all others that should follow the trade, and for prohibiting as well the impression of all new books without license, and of such as have been

licensed formerly without a new one, as the importation of all books in the English tongue, printed abroad, and of all foreign books whatever, till a true catalogue has been presented to the Archbishop of Canterbury, and the Bishop of London, and the books themselves had been received by their chaplains, or other learned men of their appointment, together with the masters and wardens of the Stationers' Company." A printer disobeying this order was to be fined, disabled from printing thereafter and the printing press forfeited.

The quarrel between Charles I and the Long Parliament resulted in the abolition of the Star Chamber, but the only result, as far as the press was concerned, was a change in masters, the Crown giving place to Parliament. From time to time orders were issued by the Parliament^[40] similar in tone to those of the Star Chamber. One dated June 14, 1643, directs that "no book, pamphlet, paper, nor part of any such book, pamphlet, or paper, shall from henceforth be printed, bound, stitched, or put out to sale, by any person or persons whatsoever unless the same be first approved and licensed under the hands of such persons as both, or either, of the Houses, shall appoint for licensing of the same, and be entered in the Register Book of the Company of Stationers, according to ancient custom, and the printer thereof shall put his name thereto." It was in reply to this action by Parliament that Milton produced in 1644 his "Areopagitica," that matchless plea for freedom of speech and the liberty of the press. "We should be wary therefore," he writes, "what persecution we raise against the living labours of public men, how we spill that seasoned life of man, preserved and stored up in books; since we see a kind of homicide may be thus committed, sometimes a martyrdom; and if it extend to the whole impression, a kind of massacre, whereof the execution ends not in the slaying of an elemental life, but strikes at the ethereal and fifth essence, the breath of reason itself; slays an immortality rather than a life."^[41]

But these stirring words fell on ears dulled by the clamor of contending battalions. It is true that from time to time a report of proceedings in Parliament appeared under the title of "Diurnal Occurrences in Parliament," but in general Parliament was ever ready to crush at its first appearance any spirit considered by the members to be dangerous to constituted authority. On Sept. 30, 1647, Parliament, at the instigation of Fairfax, passed an ordinance, "for the better regulation of printing," by

which the restrictions were increased and a licenser appointed to whom before printing, all manuscripts had to be presented for approbation.

With the Restoration of Charles II the control of the press was continued by means of the Licensing Act of 1662, passed several times for periods of two years, finally expiring in 1679.^[42] This was essentially a republication of the Star Chamber order of 1637, but since the Star Chamber no longer existed the scene was changed from that Court to the Old Bailey. In 1679, at the trial of Henry Carr,^[43] indicted for some passages in a weekly paper, the Lord Chief Justice Scroggs declared it criminal at common law to “write on the subject of government, whether in terms of praise or censure, it is not material; for no man has a right to say anything of government.” In 1685, on the accession of James II, the Licensing Act was passed for a period of seven years, and in 1692, (during the reign of William and Mary), it was renewed for one year and the session of the following Parliament. In 1695 the House of Commons refused to again pass it, and in this way the Act expired, never to be renewed, and the press was placed on a footing of equality before the law with all other trades and occupations. And yet, as has been well pointed out by Macaulay,^[44] the reasons given by the Parliament for their action did not in any way touch on the question of the rightfulness of a free press, but rather dealt with certain complaints in regard to the provisions of the law and the mode of application. “This paper,” he writes, “completely vindicates the resolution to which the Commons had come. But it proves at the same time that they knew not what they were doing, what a power they were calling into existence. They pointed out concisely, clearly, forcibly, and sometimes with a grave irony which is not unbecoming, the absurdities and iniquities of the statute which was about to expire. But all their objections will be found to relate to matters of detail. On the great question of principle, on the question whether the liberty of unlicensed printing be, on the whole, a blessing or a curse to society, not a word is said. The Licensing Act is condemned, not as a thing essentially evil, but on account of the petty grievances, the exactions, the jobs, the commercial restrictions, the domiciliary visits, which were incidental to it. It is pronounced mischievous because it enables the Company of Stationers to extort money from publishers, because it empowers agents of the government to search houses under the authority of general warrants, because it confines the foreign book trade to the port of London, because it detains packages of books at

the Custom House till the pages are mildewed. The Commons complain that the amount of the fee which the licensers may demand is not fixed. They complain that it is made penal in an officer of the Customs to open a box of books from abroad, except in the presence of one of the censors of the press. How, it is very sensibly asked, is the officer to know that there are books in the box until he has opened it?" Such were the arguments which did what Milton's "Areopagitica" had failed to do. But what we mean to-day by the term, the liberty of the press, is much more than the mere right to print without a previous application to a censor. The position which the press holds in this generation is the result of a slow but steady growth. After the refusal by Parliament to renew the Licensing Act the courts still did their best to prevent the reaping of any benefit from this. Newspaper reporting, and especially the reporting of Parliamentary debates was frowned on by Bench and Parliament alike. In 1722 the House of Commons passed the resolution "That no printer or publisher of any printed newspaper do presume to insert in any such papers any debates or other proceedings of this house or any committee thereof" and when Edward Cave in 1731 began to publish in his "Gentleman's Magazine" a report of the debates he had to resort to the fiction of a "Senate of Great Lilliput" and even then lived in continual fear of prosecution.

As time passed Parliamentary reporting came to be tacitly recognized, but the law of libel still retained all its terrors. Bentham told the truth when he said "Anything which any man for any reason, chooses to be offended with is libel." Lord Mansfield in the case of Henry Sampson Woodfall, prosecuted for publishing a seditious libel, enunciated the theory that the work of the jury began and ended with deciding the fact as to whether the accused was or was not responsible for the publication of the matter complained of, the crown, through the court, to decide whether the matter was libellous. For twenty years the question was fought over, and at last in 1791, Fox having changed his views in the matter, introduced his famous bill to amend the law of libel, and in 1792 the bill became law. The importance of this act can hardly be overestimated. After stating that "doubts have risen whether on the trial of an indictment or information for the making and publishing any libel, where an issue or issues are joined between the king and the defendant or defendants, on the plea of not guilty pleaded it be competent to the jury empanelled to try the same to give their verdict upon the whole matter in issue." It goes on to enact that "the jury

may give a general verdict of guilty or not guilty upon the whole matter in issue, and shall not be required or directed by the court or judge to find the defendant guilty merely in the proof of the publication by such defendant of the paper charged to be a libel, and of the sense ascribed to it in the indictment or information.” In the same spirit Judge Fitzgerald told a jury^[45] “You are the sole judges of the guilt or innocence of the defendant. The judges are here to give any help they can; but the jury are the judges of law and fact, and on them rests the whole responsibility.”

Thus the idea of legal restrictions on the press passes away, and the law of libel becomes a law of the press in any case where defamation or false report is charged, and to a jury is committed the task of deciding whether the statement made was justified and proper. As Prof. Dicey aptly puts it,^[46] “freedom of discussion is, then, in England, little else than the right to write or say anything which a jury, consisting of twelve shopkeepers, think it expedient should be said or written.... Whether in any particular case a given individual is to be convicted of libel depends wholly on their judgment, and they have to determine the questions of truth, fairness, intention, and the like, which affect the legal character of a published statement.”

But this point of view, which is the position in England, and to a large extent in our own land, has not been reached without a struggle, and it is to that struggle, so far as it was carried on in the American Colonies, that we must now turn our attention.

LIVINGSTON ROWE SCHUYLER.

NEW YORK CITY.

(To be continued.)

THE AUTOGRAPH

UNPUBLISHED POEM BY THOMAS DUNN ENGLISH

[The MS. was sold in New York recently.]

Some hunt the tiger in his jungle deep,
Some chase the altitudinous giraffe,
Some fight the grizzly bear on mountain steep
And all of these their cup of pleasure quaff.
But fiercer rapture theirs who forward leap
To meet the grim, ferocious Autograph.
A terrible brute! but not so dangerous when
The prudent author keeps him in his—pen.

THE THIRTIETH OF MAY.

[Uncle John in the Cemetery, after the Decoration]

These are not all!
Here by the wall
Is the grave of one who died in the war,
Though her body hadn't a wound nor scar.
Her hope and heart was broken, when
In a mass o' men
Her lover fell in a pool of gore
With the flag he bore.
Her life and her love together fled
When he was dead.
Any vi'lets left, girls? Let them fall
Here by the wall.

These are not all!
Go back, and call
The boys that carry the evergreen.
Here is a grave you men hain't seen.
It's old man Brown's. His heart clean broke
'Most as if he was women-folk.
He had five sons—his wife was dead—
Nothin' could keep 'em to home, he said.
An' every last one o' that whole lot
Had to get shot!
Th' old man hadn't no grit, no pride—

Jest up and died!
Lay the evergreen softly down
Over the grave of old man Brown.

These are not all!
Let lilies fall
Here on this wee small grave in the shade.
I can remember the day we laid
The Captain's baby in this green spot.

Cap. he was shot.
An' some fool neighbor made haste to tell
The Captain's widdie the news, and—well,
Down she went in a faint—jest fell!
And it killed the baby. She lived on,
Health and reason forever gone.

Lay lilies here.
Was that a tear?—
I went to the war myself that year.

Put roses here.
This grave is dear—
She was my sister. The truest heart,
Always ready to do her part.
Gave up *her* son
When the first gun
Thundered at Sumter! She had but one.
An' *she* died, when
(With stronger men)
He starved to death in a prison pen.
(The boy she had fed, and clothed, and kissed,
An' done for, so that he hardly missed
His father—dead when he was a child.)
She never smiled.
She loved red roses when we was small;
Here let them fall.
We honor the soldiers; but they ain't all!

MRS. E. M. ADAMS.

MOUND CITY, KANSAS.

ANTIQUITIES OF THE SOUTHWEST AND THEIR PRESERVATION

Those who are studying the history of civilization on the American Continent realize that the subject presents many and intricate problems which can not be solved in this generation. Accordingly, to preserve the material on which this study is based for the use of future generations, is as important as are present investigations.

The title of this paper suggests two classes of material to be considered. The historian will be concerned principally with the remains that mark the advance of the Caucasian race. The remains of the indigenous tribes interest the ethno-archæologist.

To a country so poor in archives as ours is, the possession of numerous historic monuments, landmarks and remains of structures where history has been made is especially fortunate and their preservation doubly important. For a nation to cherish its own history, live in the heroic and righteous acts of its past, is to conserve its vitality and independence.

In the majority of the States we find a moderate degree of enthusiasm for historic sites; sufficient at least to afford them adequate protection and insure their preservation. Some far-seeing societies are alive to the significance of the historic highways that penetrated the American wilderness and are marking them with permanent milestones. A notable example of this is the marking of the "Old Santa Fe Trail" by the people of Kansas—a movement in which Colorado and New Mexico might well join. The determination of Coronado's line of march has occupied the attention of careful students for many years and we may hope at some future time to see positively determined sites on this historic way permanently marked and recorded.

The significance of our frontier has not been recognized except in social science. Fortunately its advance is well marked. The movement of the military frontier is preserved in monuments and military post buildings throughout the west. Court-house corner stones record the advance of law and order, we may say, the legal frontier—its earliest landmarks in the far west in the form of prominent trees, high bridges, and projecting beams, being pointed out with modest pride by the early inhabitants as memorials of Judge Lynch and the Vigilantes. The progress of education and religion is marked by record stones upon the public edifices devoted to these uses. The importance of all these records should be more generally recognized. Whenever a modern structure is to succeed an antiquated public building, the old record stone should invariably be preserved and reset in some conspicuous place. Future students of history and social sciences will see in these the ancient shore-lines of American social development.

The military-religious frontier of the Spanish-American civilization moved from south to north. Its limits are marked by the quaint old mission churches of New Mexico and California. Some of these buildings are still in the hands of the Church, in use and kept in repair. Some are on the sites of long-abandoned Pueblo Indian villages, at the mercy of the elements and the vandals. In California these splendid old landmarks are being cared for by the organized efforts of thinking people and we need give ourselves no concern as to their preservation. Not so in New Mexico. Here we have ruins of five of the oldest historic structures of which any vestiges remain on the soil of the United States, all dating from the first half of the 17th century; all abandoned yet nobly resisting the elements. These are the ruins of the mission churches at the abandoned pueblos of Pecos in western San Miguel county; Giusewa in the Jemez valley near Perea; Tabira, popularly known as “Gran Quivira” in northeastern Socorro county, and Abo and Cuaray in eastern Valencia county.

A peculiarly interesting class of ruins is that of the pueblo villages that were occupied at the time of the coming of the Spaniards and abandoned during the next century. Archæological work in such sites should yield valuable results by disclosing the first influences of the exotic civilization upon the indigenous tribes. Noteworthy sites of this character are those near Zuñi and a number of the Rio Grande Valley.

The Southwest is rich in historic sites, but in prehistoric remains its wealth is practically limitless. It is with these that we shall deal principally in this paper.

The distribution of the indigenous tribes of America was determined primarily by drainage; that is to say, the food quest was the chief concern of primitive man. First of all, he sought food and water, and we can readily see that, of these two, water was first in importance. Where water was, there food was likely to be. Game frequented water courses. Plant food depended upon moisture. Now in the southwest, water was scarce, consequently no other portion of the United States was so poor in game. Hunting tribes, therefore, shunned its desert wastes. Their frontiers were the Pecos valley in eastern New Mexico, practically the western limit of the buffalo, and the divide running east and west across southern Colorado and Utah, separating the San Juan, south of which lay the arid region, from the splendid hunting ranges on the north which extended from ocean to ocean except where broken by the Utah and Nevada deserts. There was thus a tract of country bounded on the east by the Pecos river, on the north by the San Juan, extending west to the Colorado and south to the Gila in which aridity was the dominant climatic condition. Being poor in game, it was not until comparatively recent times that it was much frequented by nomadic Indians. Comanches, Utes, Navajos and Apaches had no use for this region until it was occupied by some one whom they could dispossess of wealth. Primitive economic systems are not unlike those of civilized men. In both states of culture, wealth is acquired in two ways, namely, by producing it and by dispossessing others of it. Savages and civilians naturally divide into two great classes, the productive and the predatory. It is a far cry from the murderously straightforward method of the Apache to the highly specialized up-to-date commercial system, or even the comparatively direct methods of modern politics, but the difference is merely in technique. Now in the absence of game and of victims for robbery, the first settlers of that arid region were driven to produce their living by agriculture. This could only be successfully done by irrigation. Accordingly lines of migration followed water ways and springs. Moreover, this condition was conducive to a comparatively sedentary life, and this leads to permanent home building.

Now the region under consideration embraces all of New Mexico and Arizona, southwestern Colorado and southeastern Utah, and is comprised within four principal drainage areas, viz: the Rio Grande, the San

Juan, the Little Colorado, and the Gila, the last three being tributary to the Colorado. Over this area physiographic conditions are quite uniform and the indigenous tribes now inhabiting it likewise; not as to linguistic stock, but in general and specific culture. By indigines I mean the various sedentary tribes generally called Pueblos as distinguished from the intrusive Utes, Navajos and Apaches, which tribes came in chiefly for predatory reasons after the indigenous tribes had acquired sufficient property to make them desirable prey. This indigenous culture was doubtless composite as to blood and the uniformity developed was the natural result of living for a long period of time under definite uniform environmental conditions. Its primary migration movement was from south to north, but branching in all directions, and the almost countless prehistoric ruins following the water-courses of the southwest are the remains of these early migrations.

The present sedentary Indians of the southwest, called by us Pueblos, are thus the true indigines of that arid region so far as we can judge from existing evidences. All presumption of earlier or different races is purely hypothetical, as yet unsupported by any shadow of evidence. These primitive agriculturists became builders of more or less permanent houses, dependent always upon the permanence of the water supply. The character of their habitations was usually determined by geological environment. The characteristic style of architecture evolved was the multiple-chambered stone structure that we call the *pueblo*. The earliest of these were comparatively small, single-storied dwellings of an indefinite number of rooms rarely exceeding fifty, scattered about over the arable areas. The ruins of these to be found in the southwest are quite uncountable. Later, as predatory neighbors multiplied and the people crowded together for mutual aid the enormous hives of hundreds of cells came into existence. These were often carried to a height of five or six stories. At the same time and for the same reason another style of habitation came into existence, namely, the cliff-dwelling. Its type was always determined by geological conditions. If ledges difficult of access and protected by overhanging cliffs could be found, dwellings were built upon them, not differing structurally from pueblos. If the cliffs presented only perpendicular faces, and were of comparatively soft material, dwellings were excavated in them, single or multiple-chambered, and thus strongly defensive homes established.

Thus we have in the southwest a most fortunate situation for the archæologist. The ruins are of such a character and so situated as to resist

the action of the weather, and the climate singularly adapted to the preservation of not only the buildings, but also the more perishable remains. So completely did the indigenous culture overspread the area in question that there is not a waterway of any consequence from the Pecos to the Colorado and from the San Juan to the Gila that is without numerous ruins. They are distributed along not less than a hundred valleys in New Mexico, Arizona, Colorado and Utah. In a paper and map prepared recently for the use of the Department of the Interior, I have indicated the distribution of the ruins over the four general drainage-areas, the Rio Grande, the San Juan, the Little Colorado, the Gila, and as a tentative scheme have shown how they may be grouped into twenty archæological districts. (This grouping has no ethnological significance.)

The districts are grouped as follows:

I. The Rio Grande Basin:

1. Pajarito Park district.
2. Pecos Pueblo district.
3. Gran Quivira district.
4. Jemez district.
5. Acoma district.

II. The San Juan Basin:

1. Aztec district.
2. Mesa Verde district.
3. Chaco Cañon district.
4. Cañon de Chelly district.
5. Bluff district.

III. The Little Colorado Basin:

1. Tusayan district.
2. Flagstaff district.
3. Holbrook district.
4. Zuñi district.

IV. The Gila Basin:

1. Rio Verde district.
2. San Carlos district.
3. Lower Gila district.

4. Middle Gila district.
5. Upper Gila district.
6. San Francisco River district.

Following is a brief memorandum showing the extent of each district:

I. RIO GRANDE BASIN.

This culture area, lying wholly in New Mexico, embraces the Rio Grande Valley with its tributaries from Ojo Caliente on the north to Socorro on the south and from Acoma on the west to the plains east of the Manzano Mountains.

II. SAN JUAN BASIN.

The ruins of the San Juan Basin consist of both large and small communal houses and true cliff dwellings in great numbers. They are scattered in numerous, irregular groups over the contiguous portions of New Mexico, Colorado, Utah, and Arizona. All the ruins of the San Juan and its tributaries have suffered much from destructive collectors.

III. LITTLE COLORADO BASIN.

This extensive region embraced in the valley of the Little Colorado and its tributaries is pre-eminently a region of pueblo ruins, though some cave dwellings are found. It is especially rich in prehistoric pottery. Because of its wealth of relics this region has suffered more than any other from the traffic in prehistoric wares. However, we are fortunate in that Dr. J. Walter Fewkes of the Bureau of American Ethnology has made the districts of the Little Colorado a subject of research for many years. His voluminous reports on this region have put us in possession of a vast amount of information on the archæology and ethnology of the Southwest. His collections from Sikyatki for the National Museum, made in 1895, with the assistance of Mr. F. W. Hodge of the Smithsonian Institution, together with the collections made from the Holbrook district by Doctors Fewkes and Hough, form, probably, the most valuable collection of prehistoric pottery in existence. Another extensive collection of pottery from this region may be seen in the Field Columbian Museum in Chicago.

IV. GILA BASIN.

This is another region that embraces practically every species of prehistoric ruins. It is of vast extent and comprises, besides the valley of the Gila proper, the large valleys of the Salt and Verde rivers. As a seat of prehistoric culture it was one of the most extensive and populous. Many ruins of these three great valleys are on irrigable lands, and, accordingly, have disappeared with the advancement of agriculture.

It would not be possible within the limits set for this paper to describe the ruins of each of these twenty districts, but we may point out briefly the principal features of one district in each drainage area.

1. PAJARITO PARK DISTRICT.

This district lies between the Rio Grande on the east and the Jemez Mountains on the west, and extends from Ojo Caliente on the north to Cochiti on the south. In the northern part are the ruins of Homayo, Houiri (Ho-we-re), and Pose on Ojo Caliente Creek. Ten miles west, below El Rito, is the large ruin of Sepawi (Se-paw-we). Near the village of Abiquiu, on the Rio Chama, is the important ruin of Tsiwari (Tsi-wa-re). These are all pueblo ruins, and not well preserved.

The central portion of the district is the Pajarito Park proper, the region that has for some years been under withdrawal by the General Land Office and favorably reported on for a national park, for which it has many advantages, being of great scenic beauty, accessible, and one of the richest in the Southwest in well-preserved prehistoric remains. It contains innumerable cavate houses, a vast number of small pueblo ruins, and the ruins of the great communal dwellings of Puye, Otowi, Tsankiwi (Tsan-ke-we), Navakwi (Nav-a-kwe), and Pajarito or Tchrega. Vandalism has greatly diminished among these ruins since the park has been under withdrawal.

In the southern part of this district, between the Rito de los Frijoles and Cochiti, are the ruins of six pueblos, and a considerable

number of cavate houses, the interesting Cueva Pintada (painted cave), and the famous shrines known as the “Stone Lions of Potrero de las Vacas and Potrero de los Idolos.”

2. MESA VERDE DISTRICT.

In this district are the finest specimens of true cliff dwellings. They are very numerous in the cañons of Mesa Verde and along the Mancos River. Cliff Palace is justly one of the most famous works of prehistoric man in existence. Numerous pueblo and cliff ruins are distributed along the McElmo, the Yellowjacket and the Hovenweep. On the whole, this is one of the most interesting of all prehistoric districts. A portion of it is under withdrawal by the General Land Office, pending the creation of the Colorado Cliff Dwellings National Park. The intelligent interest of the people of Colorado has done much toward the preservation of these ruins. However, the entire district has suffered much from vandalism, a majority of the burial mounds having been destroyed. A national park in this region would be of great educational value.

3. ZUÑI DISTRICT.

This region is rich in both historic and prehistoric ruins. On Zuñi Reservation are the ruins of the historic seven cities of Cibola. El Morro, or Inscription Rock, is an interesting historic monument east of Zuñi which is under temporary withdrawal by the General Land Office. The region south of Zuñi to Quemado is known to be full of ruins, and traders are securing large collections of pottery therefrom at the present time. The ruins of Zuñi have been thoroughly made known to us through the work of the Hemenway expedition, under the direction of the late Frank Hamilton Cushing, assisted by Mr. F. W. Hodge. The collections of this expedition are now in the Peabody Museum at Harvard University. Other important researches have been made in the Zuñi district by Doctor Fewkes.

4. RIO VERDE DISTRICT.

On the northern tributaries of the Rio Verde are many cliff ruins. Of these, Honanki and Palatki are the most important. They are within the limits of the San Francisco Mountains Forest Reserve. There are numerous cliff ruins along Oak Creek and Beaver Creek and their tributaries. Near Camp Verde is the ruin known as "Montezuma Castle," and a little farther up Beaver Creek, on the Black Mesa Forest Reserve, is the interesting Montezuma well. Mr. Mindeleff and Doctor Fewkes have made important studies and reports on the ruins of this district.

Fortunately not less than nine-tenths of the prehistoric ruins of the Southwest are on lands owned or controlled by the Government of the United States; that is, they are on Forest Reserves, on unreserved public lands and on Indian Reservations.

By virtue of Section 441, U. S. Revised Statutes, the care and custody of the public lands is vested in the Secretary of the Interior, and Section 453 declares that the Commissioner of the General Land Office shall perform under the direction of the Secretary of the Interior all executive duties in anywise respecting such lands. There can be no question that this statute lays upon the Department of the Interior and the General Land Office the obligation to protect the archæological remains that are upon the public lands as definitely as it does the timber and other values.

In the exercise of the power thus conferred a policy has grown up in the Department of the Interior that should be more widely understood. This policy mobilizes, so to speak, the entire force of forest supervisors, rangers, special agents, Indian school superintendents and teachers, Indian agents, farmers and police, and even the Indians themselves, in the protection of these ruins as one of their regular duties, for the avowed purpose of preserving them for scientific investigation. It establishes the liberal policy that any competent scientist who desires to place the material secured in a public museum will be authorized by the Department of the Interior to examine ruins, but that no person will be permitted to excavate them for the purpose of acquiring specimens for traffic or private gain, and that wilful destruction of historic and prehistoric landmarks must cease. The most zealous archæologist must admit that this leaves little to be desired. The main thing, a system of governmental protection for archæological remains, is an accomplished fact. All the available forces of the Department are being wisely utilized. The scientific branch of the Government is lending its

aid by furnishing as called upon the needed information concerning sites that are of value to science. Especially noteworthy is the emphasis habitually laid by the Commissioner of the General Land Office on "*the importance of furthering in every way possible researches with a view to increasing the knowledge of such objects and aiding in the general advancement of archæological science.*" This is administrative policy that every scientific man can uphold with most cordial enthusiasm.

Let us now consider the question of legislation relative to archæological remains. Three bills touching this subject will receive attention at the hands of the present Congress. Two of these are bills for the creation of national parks. One embraces the famous pueblo-like cliff dwellings of Mesa Verde, Colorado; the other includes the great district of pueblo ruins and excavated cliff dwellings known as Pajarito Park near Santa Fe, New Mexico. These bills are worthy of the strongest support, not only from the standpoint of historic and scenic preservation, but because of the educational value of the opening up of these interesting districts to the traveling public. Both bills are thoughtfully prepared, provide for the preservation and care of the ruins, and that, with the permission of the Secretary of the Interior, excavations may be conducted by properly qualified persons in the interests of science. These are districts of magnificent scenery, embracing less than two townships each, of non-mineral, non-agricultural lands. No rights whatever will be encroached upon, not a settler disturbed. I know of no reason whatever for opposition to either of these bills. They have the support of the people of Colorado and New Mexico, and their passage is urged by the Department of the Interior, the General Land Office having officially examined and favorably recommended both districts for the purposes specified.

The other bill referred to is of much greater importance since it is a general measure touching not only the preservation of archæological remains but affecting the whole field of archæological research. Such bills should receive the most critical scrutiny of those who are engaged in archæological work and know the field. This bill was introduced at the last session of Congress as H. R. 13478 by Congressman John F. Lacey of Iowa. The bill originated in the Department of the Interior. It grows out of the practical experience of the General Land Office in dealing with this subject. It is based on a knowledge of the situation and all the administrative problems involved. It is technically well drawn and exactly along the broad

commendable lines of the policy of the department as above set forth. It is in fact an outgrowth of the operation of that policy, the crystalization of which into legislative enactment is now prayed for. Through repeated official declarations and acts we know in what manner the powers conferred in the bill will be administered. The reasons for desiring this enactment are set forth in the Annual Report of the Commissioner of the General Land Office for 1904. Since it is clear that the measure has for its motive the advancement of archæological science and since it emanates from the department that has learned the necessities of the case by long experience and will be charged with its administration, it manifestly should receive the support of the scientific forces unless on examination it is found inadequate. It has been widely published and is the only bill that has been drawn for the purpose that has not met with pronounced objections. I trust that this Society^[47] will give serious consideration to the measure and, if it meets with your approval, send at the proper time a strong expression of that approval to the National Congress.

EDGAR L. HEWETT.

NATIONAL MUSEUM, WASHINGTON.

JOHN PAUL JONES' FELLOW OFFICERS

So much public interest has been aroused in the United States by the discovery of the body of John Paul Jones in Paris, and so many misleading and confusing statements have been published about his career that it is desirable to understand just what was the part he played in the naval struggle for independence, and what is the value of his services as compared with those rendered by his compatriots on the high seas. Jones, unquestionably, stood head and shoulders over his brother officers in the service of the Revolution; yet there were some who pressed him rather closely in the award of honors concerning whose deeds comparatively little is known.

[It was our hope to have printed an account of the finding of John Paul Jones' body, written by General Horace Porter, but the General wrote us from Paris May 22:

"I knew very well Mrs. Lamb's Magazine, and would be very happy to be a contributor to yours, but am so pressed by the winding up of my duties here, and the finishing of the translations of French experts and scientists, etc., on the Paul Jones matter, that I really have not a moment I can call my own. Assuring you of my appreciation of the interest you have manifested in the subject, and regretting very much that I cannot answer you more favorably.

Yours very truly,

HORACE PORTER."

We have, however, much pleasure in quoting from the New York *Evening Post* the article by Edgar Stanton Maclay.—ED.]

Captain Jones was a prolific chronicler of his own doings and left invaluable records of his truly brilliant achievements. This is mentioned not in the least to detract from the credit so justly due him (for it is the more to his honor that, in the rough-and-tumble calling he espoused, he found time to cultivate one of the "polite arts," then generally deemed unnecessary in his profession), but to explain why it is that so little is known of what his

brother captains accomplished in the same period. Our navy officers of the Revolution were bred, as a rule, in the hard school of experience, and, to most of them, the task of writing was about as distasteful as taking a dose of unpalatable medicine. The result has been that, while the world for one hundred and twenty-five years has been fully informed of the superb heroism of John Paul Jones, it has been kept in comparative ignorance of what his contemporaries accomplished.

This is regrettable for more reasons than one, chief among which is that, while Jones will be found to have suffered nothing by the comparison, these humbler heroes of his day have not received the recognition so justly due them. Of the twenty-nine officers who held the rank of naval captain in our service during the Revolution, only a few emerged from obscurity. They, like the great majority in all services, were destined to perform that hardest of all professional work, the monotonous routine duty incident to the carrying on of naval war.

There were a few, however, who had the good fortune to emerge from the oblivion of naval drudgery, and, perhaps, the greatest of these is Nicholas Biddle, of good Pennsylvania stock. He commanded the *Andrea Doria* in the first naval expedition of the war, Captain Jones (then a lieutenant) serving in the same squadron aboard the flagship *Alfred*. Jones shortly afterward won the immortal distinction of taking the *Serapis* while his own ship went down.

A year before the *Bonhomme Richard-Serapis* fight, Biddle had the unique distinction of both “going up” and “going down” in his ship, the thirty-two gun frigate *Randolph*, in her engagement with the ship-of-the-line *Yarmouth*. Jones’ bravery of Flamborough Head was superb, but it does not equal the patriotism and noble sacrifice of Biddle, who, in order to save his convoy of seven rich merchantmen laden with goods indispensable to the American cause, unhesitatingly ran alongside the monster ship-of-the-line and was blown up, 311 of the *Randolph*’s complement of 315 perishing, including Biddle—but the convoy was saved. This was the noblest act of self-sacrifice on a large scale, in the annals of the American navy. Earlier in the war Biddle, while in command of the *Andrea Doria*, in a cruise of four months captured ten English vessels, which, with the exception of two, reached port in safety—two of the prizes containing 400 soldiers of a Highland regiment.

While the immortal distinction of being the first man to hoist our national colors aboard an American warship belongs to Captain Jones, the by no means small honor of showing the American flag for the first time on a regularly commissioned American warship in European waters belongs to Captain Lambert Wickes, who crossed the Atlantic in the sixteen-gun war brig *Reprisal*. Lambert made a cruise in the Bay of Biscay, and in two circuits of Ireland took some twenty prizes.

Nor should the daring cruises of Captain Gustavus Conyngham in the *Surprise* be overlooked. One year before Captain Jones appeared on the other side of the Atlantic as commander of an American warship, Conyngham scoured the coast of England and picked up prizes in the very chops of the English Channel. Our commissioner in Europe, Silas Deane, wrote:

“Conyngham, by his first and second bold expeditions, is become the terror of all the eastern coast of England and Scotland, and is more dreaded than Thurot was in the late war.”

Then there were Captains Thomas Thompson and Elisha Hinman, who one year before Captain Jones’ appearance in English waters, executed a dash against a British fleet which is second in audacity only to Jones’ attack on the British fleet off Spurn Head. On the night of September 2, 1777, the thirty-two-gun frigate *Raleigh*, and the twenty-four-gun ship *Alfred*, commanded by Captains Thompson and Hinman, while on their way across the ocean, discovered a fleet of merchantmen, escorted by four British warships, among them the *Druid*. Availing himself of the cover of night, Thompson worked his way into the fleet undetected, and getting alongside the *Druid* opened a terrific fire on her so that in a short time she was reduced to a sinking condition. Realizing the folly of fighting the combined escort, Thompson then made good his escape, and arrived safely in France with the *Raleigh* and *Alfred*.

Nor should the daring of an American privateer be overlooked, which, very much after the manner of Jones at Whitehaven, sent a force of men ashore on English soil and made prisoners of a lieutenant and an adjutant of a British regiment, as the following extract from the private letter of an English gentleman will show:

“An American privateer of twelve guns came into this road [Guernsey] yesterday morning, tacked about on the firing of guns from the

castle, and, just off the island, took a large brig bound for this port, which they have since carried into Cherbourg. She had the impudence to send her boat in the dusk of the evening to a little island off here called Jetto, and unluckily carried off the lieutenant of Northley's Independent Company with the adjutant, who were shooting rabbits for their diversion."

Not only in English home waters were American naval efforts being expended with conspicuous advantage to the cause before Jones appeared on the scene, but in British colonial possessions our hardy mariners created unprecedented havoc in the enemy's commerce, which did much to bring the mother country to terms. An English correspondent writing from Jamaica under date of May 2, 1777, said that in one week upward of fourteen English ships were carried into Martinique by American warships. Another Englishman, writing from Grenada, April 18, 1777, said:

"Everything continues excessively dear here, and we are happy if we can get anything for money by reason of the quantity of vessels that are taken by American privateers. A fleet of vessels came from Ireland a few days ago. From sixty vessels that departed from Ireland, not above twenty-five arrived in this and neighboring islands, the others (it is thought) being all taken by the American privateers. God knows, if this American war continues much longer, we shall all die of hunger. There was a Guineaman that came from Africa with 450 negroes, some thousand-weight of gold dust, and a great many elephant teeth; the whole cargo being computed to be worth twenty thousand pounds sterling, taken by an American privateer a few days ago."

Captain Jones' brilliant career does not suffer by a comparison with these extraordinary achievements on the high seas. On the contrary, his record is the more resplendent by the contrast. These incidents are mentioned only to show that while Jones was the brightest star in the galaxy of our naval heroes, "there were others" who contributed to the lustre of American naval renown in the Revolution.

Having shown, briefly, the work done by other distinguished sea fighters in our struggle for independence, we can better estimate the worth of the truly great achievements of Captain John Paul Jones while in the service of the United States. They suffer no diminution by having Captain Jones shorn of the false title of "Admiral." There have been only three "Admirals" in the United States navy: Farragut, Porter, and Dewey. The

nearest approach to an admiral in our navy of the Revolution was the title conferred upon Esek Hopkins, who was made “commander-in-chief” of our sea forces, a rank intended to correspond to that held by Washington on land. On the escape of the British warship *Glasgow*, in Long Island Sound, 1776, Hopkins was unjustly blamed for the mishap, and the title of “commander-in-chief of the navy” was dropped.

Neither is it necessary to call Jones the “father of the American navy.” If such a title could be properly applied to any one, that person is John Adams, who, from the beginning, strenuously advocated the need of a navy, and worked harder than any one man of his time for its establishment on a permanent basis. The fame of Captain Jones needs none of these artificial bolsters for its support. It stands on the solid foundation of personal merit and nothing can add to or detract from it. We have ample evidence of this in the extraordinary manifestation of popular interest in the removal of his remains from a foreign soil to a final resting place in America.

What has been said here about the exploits of other naval heroes in the Revolution is used merely as a foil for the better setting off of the great central figure of the navy of that period. What Biddle, Wickes, Conyngham, Thompson, Hinman, and the American privateersmen did separately, Jones did as one man.

After taking as commendable a part as a subordinate could in the successful expedition to New Providence, he commanded the warship *Providence*, and performed some of the most remarkable feats in seamanship on record, besides inflicting serious losses on the enemy. As commander of the *Alfred*, in which he began his American career as lieutenant, he added to his reputation as a daring and successful skipper. In the *Ranger* he cruised in the Irish Sea with a boldness and success that has never been surpassed, while his extraordinary career in the *Bonhomme Richard* stands unsurpassed in the annals of the world’s naval history. Within the scope of his necessarily limited naval activities, he has set a standard of professional excellence that present and coming generations of naval aspirants will find difficult to surpass.

EDGAR S. MACLAY.

Evening Post, N. Y.

THE MOONLIGHT BATTLE

We have much pleasure in presenting our subscribers with the first engraving of Thomas Birch's painting of John Paul Jones' greatest sea-fight.

It illustrates the desperate encounter at the moment when a hand-grenade has been dropped from the *Bon Homme*'s mainyard down a hatchway of the *Serapis*, causing a terrible explosion.

In the distance can be seen the British merchant vessels, under the protection of the guns of Scarborough Castle, as also the conflict between the *Pallas*,—the only other ship of Jones' squadron actively engaged,—and the *Countess of Scarborough*, which also ended in the defeat of the British vessel.

For the use of the plate we are indebted to the kindness of Mr. S. V. Henkels, Philadelphia.

BURLEIGH—AND JOHNSON'S ISLAND

It is safe to surmise that several elderly Americans have watched the news from Manchuria during the past winter with a half expectation of reading of some wild adventure on the part of Bennet Burleigh, correspondent of the London *Daily Telegraph*. Among these were Mr. Justice Brown of the United States Supreme Court, who just forty years ago secured his extradition from Canada on a nominal charge of robbery, but really on account of his participation in the Johnson's Island conspiracy. Among them also was James Lattimore, once sheriff of Ottawa County, O., from whose custody he escaped, but who seems to have very pleasant recollections of his whilom prisoner, in spite of the fact that his private purse was somewhat depleted in efforts to recover the fugitive whose society he had found so agreeable that he had been in the habit of taking him about the village of Port Clinton with him. There may be living in Texas some of Burleigh's journalistic associates prepared for almost any deed of daring on his part. The sketch of his career in "Who's Who" reads as follows:

"Burleigh, Bennet, war correspondent, on the staff of the *Daily Telegraph* since 1882; b. Glasgow; married. Fought in American war (twice sentenced to death); Central News correspondent throughout first Egyptian war (present at Tel-el-Kebir); correspondent French campaign Madagascar; as *Daily Telegraph* correspondent accompanied desert column from Korti to Metammah, 1884 (present at Abu Klea, despatches); Ashanti expedition; Atbara expedition; Egyptian war (present at Omdurman); South African war, 1899–1902. Address: 95 North Side, Clapham Common, S. W."

"Who's Who" omits mention of several books of which he is the author—"Desert Warfare," "Two Campaigns: Madagascar and Ashantee." "Khartoum Campaign, 1898; or the Reconquest of the Soudan," "Sirdar and

Khalifa,” and “Natal Campaign.” In *Harper’s Magazine* for July, 1900, Fred A. McKenzie says that for Burleigh to spend a day in battle and then ride sixty miles, afterwards write a long and brilliant dispatch and get it first through, is a trifle. He also says Burleigh is an ardent Socialist and has several times been a labor candidate for Parliament in Glasgow, that his favorite drink is soda-water, and that he abjures tobacco. He adds: “When every outlet from the Transvaal was closed, he boarded the train of the Boer General Joubert and traveled with him, securing a long interview with him and full details of the Boer intentions. He so won Joubert that the old general lent him a conveyance to go over into British territory.” But, as the country editor said of another brilliant newspaper correspondent, “Alas, not for him the glittering hatchet, not for him the fruitful cherry tree.” It is not true that Burleigh, or as he was then called, Bennet G. Burley, was twice sentenced to death during the American Civil War, though it might be said that twice he stood in some danger of being hanged by the Federals, into whose hands he had fallen and against whom he had waged irregular warfare. And both times he succeeded in escaping from custody.

Judge Daniel B. Lucas of Charlestown, W. Va., in his anonymously published “Memoir of John Yates Beall,” says Burley was the son of a Glasgow master mechanic and that when he first appeared in Richmond he had in his pocket the plan of a submarine battery invented by his father. He had also a plan for a torpedo that could be attached to the side of a vessel by screws and then ignited with a fuse. Judge Lucas asserts that Burley actually assisted one John Maxwell to fasten such a torpedo to a Union war vessel, but the fuse refused to ignite, no damage was done, and the torpedo found its way to New York, where it was exhibited at the corner of Fulton and Nassau streets. At a later date a Northern newspaper printed a story that before coming to America Burley had fought in Italy both with the Garibaldians and against them: but whether this be true or not, there is no question that he was engaged with Beall in certain small privateering enterprises in the waters of Eastern Virginia, or that he took part in a raid across Chesapeake Bay under Capt. Thad Fitzhugh in March, 1864, when the raiders captured the steam tug *Titan* and destroyed another vessel. May 12, Burley was himself wounded and captured near the mouth of the Rappahannock River by a skirmish guard of the 36th United States Colored Infantry, and he had to surrender to black men, for no officers came up until the fighting was over. On his person were found papers authorizing him to

go beyond the Confederate lines, and it was suspected that he had on foot some adventure as a spy. He was taken to Fort Delaware, forty miles below Philadelphia, whence he and five others attempted their escape through a sewer, the water in which came up to the log sleepers supporting the plank cover. The fugitives had to make their way for a distance of about twenty-five yards along this sewer, diving under each sleeper as they came to it, and upon reaching its mouth to swim the Delaware River for a distance of a mile and a half, with a tide running that more than doubled the effort necessary to cover the distance. Two of them were captured at the mouth of the sewer, and two were drowned in the river, but Burley and a companion, thanks to the Scotchman's extraordinary physical powers, got away safely, being picked up in mid river by a vessel whose master professed to accept their story that they had been upset while on a fishing excursion, and took them to Philadelphia. Burley thence made his way to Canada, and in Toronto he fell in with his old associate in Eastern Virginia, John Y. Beall. Judge Lucas, who narrates these adventures, probably got his account of them from Burley himself.

Unlike the other Great Lake cities, Sandusky, O., lies not on a narrow creek, but upon the shore of a broad bay which encloses Johnson's Island, about 300 acres in extent. The island and the surrounding waters present a very pleasing aspect, and the Sandusky people are grievously disappointed that this site was not selected for the Great Lake naval training station by the board which recently decided upon a point on Lake Michigan. It is worth noting that the convincing objection to any site on Lake Erie, its ease of access from a foreign and possibly hostile country, was the very cause of much official anxiety at the only time Johnson's Island was used for a national purpose. For in October, 1861, the Government established here a *dépôt* for captured Confederate officers, whose numbers after the surrender of Vicksburg and Port Hudson ran up to between two and three thousand. They were confined within a stockade enclosing an area of fifteen acres, being housed in thirteen two-story barracks and guarded by two blockhouses, one at a corner of the palisade and one at the gate, so situated that it looked down the street between the two rows of barracks. One of these blockhouses, with the prison cemetery and the ruins of two earth forts, now forms the only relic of the island's occupation by the Confederates. The cemetery contains 206 uniform marble slabs erected after the war by the Southern people. The whole number of Confederates buried here was

about 230, five at least of whom were executed by the Federal authorities for atrocious treatment of Southern Unionists, enlisting troops within the Federal lines, and similar offenses. The graves on the island have for years been regularly decorated with flowers by the Sandusky Grand Army men when they were paying the same tribute to the memory of their comrades buried on the mainland, and they have even been subjected to some criticism for this display of magnanimity. One sometimes sees statements that none of the prisoners ever succeeded in escaping from Johnson's Island, but in the Burley extradition proceedings Capt. Robert C. Kennedy, who was afterwards hanged for his part in the plot to burn New York, swore that he had effected such an escape.

Almost from the establishment of this dépôt for prisoners of war there were rumors of threatened attacks upon it by Confederates from Canada, though the first actual plan for a Rebel raid on the Great Lakes of which we have any official evidence, seems to have been directed primarily against the *Michigan*, the only Union war vessel in these waters, while she still lay at Erie. In February, 1863, Lieut. William Murdaugh, of the Confederate navy, laid before his superiors a plan for capturing the *Michigan* and destroying the lake cities. He proposed, with a small steamer and fifty men armed with cutlasses, revolvers, and small iron buoys to be used as torpedoes, to surprise and capture the Union vessel by boarding and then, before news of the affair had reached the Canadians, to send the smaller vessel back through the Welland Canal, to work destruction along the New York shore of Lake Ontario, and especially to the Erie Canal aqueduct at Rochester, while he himself proceeded, in the *Michigan*, to treat in a similar fashion the locks and shipping at Buffalo, Cleveland, Chicago, Milwaukee, and the Sault Ste. Marie, finally running the *Michigan* ashore in Georgian Bay and destroying her. The Confederate Cabinet approved of the scheme and set aside \$100,000 for its consummation, but Murdaugh says that when everything was ready for a start Jefferson Davis, while deeming the enterprise practicable, caused it to be laid aside for a time, lest such a storm should be aroused over the violation of the British neutrality laws as to put a stop to the building of Confederate ironclads then on the stocks in England. Just six months later Secretaries Seddon and Mallory suggested to Lieut. R. D. Minor, also of the Confederate navy, a similar undertaking having for its main purpose the release of the Confederates confined at Sandusky. The proposition was eagerly embraced, and a party

of twenty-two naval officers, who undertook to carry it out, reached Montreal about October 21 and announced to the Johnson's Island prisoners, through the personal column of the New York *Herald*, that "a carriage would be at the door a few nights after the fourth of November." The original plan contemplated taking passage on a lake steamer at Windsor, opposite Detroit, and seizing her when fairly out on Lake Erie. The prisoners were expected to overcome their rather scanty guard, and their rescuers were simply to receive them on board for transportation to Canada. But on learning that the lake steamers seldom and at irregular intervals stopped at any Canadian port, and possibly because the conspirators had ascertained that the *Michigan* now lay in front of the prison, a different method was adopted. Passage was to be taken at St. Catharines on one of a line of steamers running from Ogdensburg to Chicago, for the party, as mechanics and laborers who were to be employed on the waterworks of the latter city. With numbers increased to fifty-four from escaped prisoners found in Canada, the conspirators assembled at St. Catharines armed with revolvers, butcher knives, and two small nine-pounders, a store of dumb-bells having been laid in to serve as cannon balls. A private named Conelly went to Ogdensburg and paid the passage money for twenty-five men, with an agreement that as many more laborers should be taken as he could secure. The weapons were to be boxed up and marked "Machinery," and the plan was, after seizing the vessel, to arrive at Sandusky about daylight, come into collision with the *Michigan* as if by accident, board and carry her, turn her guns on the prison headquarters, and demand the surrender of the island, the reputation for humanity of the commander, Col. William S. Pierson, being one of the factors relied on for the success of the plot. The Confederate prisoners were to be taken to Canada by some of the steamers lying at Sandusky, while the *Michigan*, her crew reinforced by some fifty rebel officers from the island, was to lay waste the shore of Lake Erie, paying especial attention to Buffalo. But on November 11, Lord Monck, Governor-General of Canada, warned the Washington authorities of the plot, at the same time taking precautions to prevent its execution. Two days before, the military officials at Detroit had sent word that an attack was to be made on the prison, and the guard had been considerably strengthened; but Lord Monck's message caused general alarm among the lake cities. While Gen. Jacob D. Cox was fortifying Cedar Point, at the entrance of Sandusky Bay, Gen. Dix was recommending the

removal of the prisoners from Johnson's Island, so greatly was he disturbed over the undefended condition of Buffalo, whither he had hurried. A month later Gen. Halleck expressed the belief that there was "no real foundation for the pretended raid," but the foregoing story of the preparations is taken from a letter to Admiral Buchanan from Lieut. Minor, who attributes the failure of the enterprise wholly to its betrayal to Lord Monck, which he charges to one McCuaig, a Canadian sympathizer with the South.

The connection is not clear between the inchoate Murdaugh-Minor plot of 1863, and the actual Beall-Burley-Cole attempt of 1864. But the advent in Canada, as a Confederate emissary, of Jacob Thompson, President Buchanan's Secretary of the Navy, probably explains the revival of the scheme. At any rate Thompson reports to Secretary Benjamin that he sent Capt. Charles H. Cole around the lakes as a lower deck passenger to study the various harbors and to learn all he could about the *Michigan*, in order to devise some plan for her capture. Cole had belonged to Forrest's command, had been taken prisoner, and had been released on taking an oath of allegiance to the United States. Maj. Robert Stiles, of Richmond, who had the misfortune to be confined in the same casemate with Cole at Fort Lafayette at a later date, regards him as an unmitigated villain and says it was believed that he had belonged to both the Union and Confederate armies and had deserted from both, and Judge Lucas, whom he once visited, entertains an almost equally unfavorable opinion of the man who now established himself in Sandusky and, professing to be engaged in the oil business, proceeded to cultivate acquaintance with military and naval officers, his tactics being based chiefly on the hypothesis that they suffered from a perennial and unconquerable thirst. He was accompanied by a woman whom he sometimes introduced as his wife, but who was regarded by some of the *Michigan's* officers as a person of doubtful character. Cole did succeed in establishing terms of intimacy with some army and navy officers, and in a newspaper article of 1882, purporting to be based on his revelations, it was asserted that he got two Confederates enlisted on board the *Michigan* and ten in the troops guarding the prison; but the article contains such absurdities as an account of a visit to the *Michigan* by Jacob Thompson disguised in petticoats, and is otherwise so palpably fictitious as to render it practically worthless. There are Sandusky traditions that he won over some of the vessel's engineering force, with the result of disabling her temporarily, but these stories are scouted by the one surviving officer of the

ship, Capt. James Hunter, of Erie, then an acting ensign, and they do not find the slightest support in the official documents of the time. The naval officer with whom Cole was most intimate was transferred to the Atlantic coast before anything happened, on account of his habits, and Capt. Hunter, whom Cole had tried to induce to leave the service, remembers his indignation with the conspirator because the latter criticised this transfer and otherwise presumed upon his acquaintance. Hunter suspected him of being a counterfeiter.

The real leader of the enterprise, John Yates Beall, was the opposite of Cole in every respect, being a young man of strong religious convictions and of serious character throughout. He was a graduate of the University of Virginia, belonged to an old family in the Shenandoah Valley, and owned one of the best farms there. Having been wounded in October, 1861, while serving as a private under Stonewall Jackson, he had spent some time with a brother in Dubuque County, Ia., and on the discovery that he was a Confederate had fled to Canada, thence returning South, and, under a commission as an acting master in the Confederate navy, embarking in those Chesapeake Bay privateering enterprises to which reference has been made and in which Burley was associated with him. His biographer claims for him the original suggestion of the Lake Erie undertaking, but he is here without support from the official records. Beall's operations in Eastern Virginia caused the Federal authorities so much annoyance that a considerable effort was made to end them, with the result that he was captured on board a schooner he had just taken in November, 1863. He and his companions were detained at Fort McHenry in irons for over a month, with the idea that they should be regarded as pirates, but Gen. Butler finally ordered them to be placed on the footing of prisoners of war, and in May, Beall was exchanged. Returning to Richmond, he participated in the fighting around Mechanicsville as a volunteer, but a little later left the army, discouraged, his biographer says, both by the neglect of his superiors and by the condition of his health. He proceeded by way of Baltimore and New York to Canada, where on applying to Jacob Thompson for the command of a privateer on Lake Huron, he was told of a plan to capture the *Michigan* and release the Johnson's Island prisoners, and at once volunteered his services. His diary says that he also went to Sandusky and had a consultation there with Cole, returning thence to Windsor, opposite Detroit, where Thompson made his headquarters, to collect his men.

Sunday evening, September 18, 1864, Burley stepped on board, at her wharf in Detroit, the small steamer *Philo Parsons*, which ran between Detroit and Sandusky. He asked the clerk, Walter O. Ashley, to stop the next morning at Sandwich, on the Canadian side of the river, to take on three friends of his, one of whom was lame and could not well cross the ferry. Ashley consented on condition that Burley should himself come aboard at Detroit. On Monday morning, accordingly, Burley was one of the passengers who started with the boat, and at Sandwich three men, one of whom was Beall, jumped aboard. Later at Amherstburgh, or Malden, also on the Canadian side, sixteen roughly dressed men, with an old trunk tied with a rope, took passage. They appeared to have no relations with the Beall and Burley party, and were supposed to be returning Americans who had run away from the draft. At Middle Bass Island, which was the home of Capt. Atwood, commanding the steamer, he went ashore, leaving her in charge of the mate and Ashley, who was a part owner. After leaving Kelly's Island, which is about six miles from the Ohio shore, Beall, who had been talking with the mate at the wheel, drew a pistol and declared that as a Confederate officer he took possession of the steamer. At the same time three others leveled revolvers at Ashley, and Burley ordered him into the cabin, whither the passengers, some fifty in number, were also driven, a guard being placed at the door. The old trunk was opened, and proved to contain hatchets and revolvers, with which the captors of the boat armed themselves. Burley proceeded to smash a trotting sulky that stood on deck and throw overboard the pieces, together with the rest of the deck load, consisting of iron, household goods, and tobacco. He and Beall then took the clerk to his office and compelled him to give up the steamer's papers, later in the day taking also what money he had, amounting to some \$90. These events occurred between four and five o'clock in the afternoon, and the boat had run down the lake to a point from which, as the mate, Dewitt C. Nicholls, afterwards testified, the *Michigan* was plainly visible in Sandusky Bay. He was asked many questions about her, and when it was learned from him that the *Parsons* had not enough fuel to take her much farther, he was ordered to turn her about and head for Middle Bass Island, where wood could be taken on board. While she was still lying at the wharf there, the *Island Queen*, a smaller boat which plied between this group of islands and Sandusky, came up, having on board about twenty-five unarmed Union soldiers, who were on their way to Toledo to be mustered out. As she

unsuspiciously moored alongside, some of Beall's men jumped on board and took possession. A dozen pistols were fired, and the engineer of the *Queen* was shot in the face, but not seriously injured. Gen. Dix, who made an official report on the whole affair, says that several persons were knocked down and that some injuries were suffered from blows with hatchets, one of which caused a profuse loss of blood, but this was the limit of personal suffering inflicted by the raiders. The passengers of both boats, after some detention in the cabin and hold of the *Parsons*, were put ashore on the island, as were most of the two crews, a few men being retained on the *Parsons* to handle her. The soldiers were paroled not to bear arms against the Confederacy until regularly exchanged, and the civilians were required to promise that they would say nothing of what had happened for twenty-four hours. Then the two steamers, lashed abreast, got under way, but after going about five miles, the *Queen* was scuttled and set adrift, afterwards sinking on Chickanolee Reef. The *Parsons* continued on her way toward Sandusky for a time, but owing to a failure to receive at Kelly's Island a messenger from Cole, all the party except Beall, Burley, and two others, weakened at the prospect of attacking the *Michigan* with hatchets and revolvers. Beall regarded their prudence as mutiny, and required from them a written statement, which was drawn up on the back of a bill of lading and can be found with the names of the signers in Capt. T. T. Hines's account of the affair in vol. 2 of the *Southern Bivouac*. With great reluctance on the part of Beall, the boat's head was turned toward the Detroit River, and the residents of Middle Bass, who were out burying their valuables, saw her steaming by in the darkness, "like a scared pickerel." On the way a Confederate flag was hoisted, the mate, Nicholls, being required to assist in the unpleasant task of getting it up, and there was some talk of attacking a vessel or two that were passed and of robbing the island home of a Detroit banker named Ives. A boat load of plunder was landed near Malden, and at Sandwich the *Parsons* was abandoned, some of her furniture being put ashore and her injection pipes being cut, so that she would fill and sink. The raiders then disappeared, a couple of them who were later arrested by the Canadian authorities being discharged by a justice of the peace after a detention of two hours.

Beall's plan of attack on the *Michigan* is not intelligible. Cole intended to have some of her officers ashore that evening participating in a revel, and perhaps there was some basis for the later talk of drugged wine to

be sent aboard. Captain Hunter remembers two occasions when Cole did send wine to the officers. The prisoners knew some scheme for their release was on foot, for Archibald S. McKennon, of South McAlester, I. T., the present counsel for the Seminole Nation, who was then on the island, tells the writer: "We were organized into companies and regiments and had armed ourselves with clubs, which were made of stovewood and other material at hand, with which to make the fight. I think I was a captain of the organization. Anyhow, I occupied some position by which I had information of the contemplated movement, for I remember I had several conferences with the colonel of the organization as to my duties, and we were in constant expectation of orders to make the fight, which never came. It surely would have been a pitiable affair, for the undertaking was wholly impracticable." Capt. Hunter has an ingenious theory that Beall intended that just as the *Parsons* entered the Bay, she should burst into flames, and when the *Michigan* sent her boats to rescue the passengers, the conspirators could get possession of these and with them gain the deck of the warship without arousing suspicion. Gen. Dix did find on the *Parsons* some combustible material, but he was probably right in supposing that it had been prepared for the purpose of burning Banker Ives's house or the *Parsons* when she was abandoned. It looks as if Beall was trusting largely to luck, which, as the case turned out, was overwhelmingly against him. For on Saturday, two days before he boarded the *Parsons*, a man professing to be a Confederate refugee in Canada called at the military headquarters in Detroit and gave such information that the following telegram was sent to the *Michigan*'s commander:

DETROIT, *September 17, 1864.*

CAPT. J. C. CARTER:

It is reported to me that some of the officers and men of your steamer have been tampered with, and that a party of rebel refugees leave Windsor tomorrow with the expectation of getting possession of your steamer.

B. H. HILL,
Lieutenant-Colonel, U. S. Army, Military Commander.

FREDERICK J. SHEPARD.

BUFFALO, N. Y.

(Conclusion next month.)



ORIGINAL DOCUMENTS

LETTER OF ROBERT STUART, INDIAN AGENT, TO JOHN C. SPENCER,

SECRETARY OF WAR.

[Secretary Spencer was the father of the unfortunate Midshipman Philip Spencer, of the brig *Somers*, who was hanged for mutiny by the orders of Captain Mackenzie. The letter is about incursions of Canadian halfbreeds. The endorsement is by General Winfield Scott, then Commander of the Army. It is interesting as referring to the now almost extinct buffalo, then found in enormous herds, and as showing the widely scattered posts of the "Old Army," and their various duties. General Scott's endorsement is in a hand as minute as he himself was large.]

Washington, *February 19, 1842.*

HON. JOHN C. SPENCER,
Sec'y of War.

SIR:

I have the honor to communicate in writing, the substance of the verbal information I gave you some time since, relative to the annual hunting expeditions which are made by the British half breeds of Red River, into the territory of the United States. These keen & expert hunters usually leave the colony in the month of June, after having made the necessary preparations for curing the meat of the large numbers of Buffalo which they annually slaughter. Their route is in the direction of Devil's Lake, & thence

diagonally across towards the Missouri River, the very region which abounds with Buffalo. From the information which I have received on this point 15 to 20,000 of these animals are destroyed annually by them. They also each Fall, divide into small parties and carry off much valuable furs. The bands of Sioux Indians, who are the possessors of this region are conciliated by presents of Liquor, &c.—and do not consequently attempt to molest them, nor would it be easy to prevent these incursions, if the Indians were so disposed; for the halfbreeds usually number 300 or 400 men, well armed & united under a species of discipline. * * * * *

If measures were taken to put a stop to these expeditions, the Hudson Bay Company would be cut off from their supplies of pimegan (pemmican—ED.) (dried and pounded Buffalo meat) upon which they rely much for subsistence; and the halfbreeds, deprived of a lucrative trade, would soon be compelled to separate into smaller bands, and remove farther into the North. Ohio & Michigan would then be resorted to by the agents of the Co. to obtain provisions, and the States would be so far benefitted in furnishing supplies, in lieu of those of which our own Indians & Traders are now so improperly deprived.

The halfbreeds of the North are for the most part a fierce & turbulent race, impatient of control, & so much feared by the Hudson Bay Co. that they are said to keep in pay some of their leading men, with a view to prevent outbreaks. They are not nearly so numerous as they have been represented, probably not exceeding 600 to 800 men, in all, and the white settlers, who numbered 1000 to 2000 a few years since, are mostly dispersed. I would suggest whether it might not be well to send a force, not less than 300 to 400 Dragoons, at the proper season, which would at once overawe both halfbreeds & Indians.

Sir, Your Obd't serv't,
ROBERT STUART,
Act'g Sup't Ind. Affairs.

Endorsement: When the 5 troops of the 2d. Dragoons, now in Florida, shall join the headquarters of the reg't., in the So. West (say in June) the 1st Dragoons may be concentrated, or nearly so, on the Upper Missouri, & thus furnish the detachment of two or three troops wanted for the within purpose. Three troops would be sufficient—Mr. Stuart does not give the southern limits of the halfbreeds. Feb. 20, 1842.

Postscript: Of the 1st Dragoons, one troop is now at Fort Atkinson (Nebraska—ED.), 6 are at Ft. Leavenworth, & 3 on the Arkansaw. I still think 3 or 4 troops of horse, say even 150 men, enough.

WINFIELD SCOTT.

Feb'y 25, 1842.

AUTOGRAPH LETTER OF EDGAR ALLAN POE.

[Addressed to his uncle, William Poe, of Augusta, Ga. Dated Philadelphia, August 15, 1840. Valuable for its details of plan of a proposed new magazine, and his past connection with others.]

DEAR WILLIAM,

Owing to a temporary absence from town I did not receive your welcome letter of the 28th July until this morning. I now hasten to reply, and in the first place let me assure you that, if I have not lately written, it is rather because I have been overwhelmed by worldly cares which left me scarce a moment for thought, than that I do not feel for you the kindest affection as well as deep gratitude for the services yourself and brothers have so often rendered me.

Herewith I send you a prospectus of my contemplated Magazine. I believe you know that my connection with the *Southern Messenger* was merely that of editor. I had no proprietary in it and my movements were therefore much impeded. The situation was disagreeable to me in every respect. The drudgery was excessive, the salary was contemptible. In fact, I soon found that whatever reputation I might personally gain, this reputation would be all. I stood no chance of bettering my pecuniary condition, while my best energies were wasted in the service of an illiterate and vulgar, although well-meaning man, who had neither the capacity to appreciate my labors nor the will to reward them. For this reason I left him and entered first into an engagement with the *New York Review* and afterwards with the *Gentleman's Magazine*, writing occasionally for [both] journals; my object being merely to keep my head above water as regards money until a good opportunity [should arrive] of establishing a Magazine of my own in which I should be able to carry out my plans to full completion and at the same time have the satisfaction of feeling that my exertions were to my own advantage. I believe that the plans I here speak of and some of them you will find detailed in the Prospectus, are well devised and digested, and will meet with the hearty support of the most desirable and intelligent portion of the community, should I be able to bring them fairly before the public I feel assured that my fortune is made. The ambition which actuates me I know to

be no ordinary or unworthy sentiment and knowing this, I take pride in earnestly soliciting your support, and that of your brothers and friends. If I fully succeed in my purpose I shall not fail to produce some lasting effect upon the growing literature of this country, while I establish for myself individually a name which that country 'will not willingly let die.'...

It is upon the South that I chiefly rely for aid in the undertaking, and I have every hope that it will not fail me in my need. Yet the difficulties which I have to overcome are great, and I acknowledge to you that my prospects depend very much upon getting together a subscription list previously to the first of December. If by this day I can obtain 500 names, the work cannot fail to proceed, and I have no fears for the result. The friendship you have always evinced, the near relationship which exists between us, and the kind offer in your last letter, all warrant me in hoping that you will exert your whole influence for me in Augusta. Will you oblige me by acting as my agent for the *Penn Magazine* in your city, this letter being your authority? If I am not mistaken, you already act in that capacity for the *Messenger*.

I will write a few lines also by this mail to your brother Robert, with a Prospectus, as you suggest—and also to Washington [Poe] at Macon.

Mrs. Clemm, my aunt, is still living with me, but for the last six weeks has been on a visit to a friend in the State of N. Jersey. She is quite well, having entirely recovered her health. Respecting the letter from Mr. Bayard I am quite at a loss to understand it. It is however possible that the letter was written by Mr. B. at a period when we were all in much difficulty in New York and that Mrs. C(lemm) concealed the circumstance from me through delicacy.

Yours truly,

E. A. P.

AUTOGRAPH LETTER OF PRESIDENT LINCOLN

[Relating to a soldier who had deserted. An interesting memento of the traditional kind-heartedness of the great President, even in such a serious matter as the desertion of a soldier in time of war, the almost invariable penalty for which is death. This letter sold for a high price in New York lately.]

EXECUTIVE MANSION

WASHINGTON, *July 25, 1864.*

Thomas Connor, a private in the 1st. Veteran New York Cavalry, is now imprisoned at hard labor for desertion. If the Colonel of said Regiment will say in writing on this sheet, that he is willing to receive him back to the Regiment, I will pardon, and send him.

A. LINCOLN.

LETTER OF WASHINGTON

[Ordering the execution of a soldier. In marked contrast to Mr. Lincoln's.
It is addressed to Col. Tucker at Albany.]

HEADQUARTERS, *20th May, 1782.*

Sir:

I have rec'd your Letter of the 11th instant and another without date the former inclosing the proceedings of a Court Martial held for the Trial of Shem Kentfield,—

Inclosed you have copy of the General Order approving the proceedings and a Warrant for the Execution of the Prisoner—the place of Execution is left to you.

The necessity of the Contractors furnishing Lard Bread when required has been represented to Mr. Morris^[48] who will doubtless take measures accordingly.

I am Sir Your very humble Servant

G. WASHINGTON.

**LETTER OF COLONEL BARNARD BEEKMAN, S. C.
ARTILLERY (STATE TROOPS.)**

[He was taken prisoner at the capture of Charleston in 1780. Zubley's Ferry was across the Savannah River to the Georgia shore. As General Moultrie was then the senior officer in South Carolina this letter was probably meant for him.]

CAMP AT SHELDON (S. C.)

23d October, 1779.

DR. GENERAL

I arrived at this Post on the ev'ning of yesterday; with the Army & Stores.—I left Capt. Hale of the 2d with a command of Fifty men at Zubly's, to cover the removal of the Corn Meal, &c., under the Direction of Col Wyllie D. Q. M. General. I am sorry to observe that that Gentleman overtook the Army at Alleston's on the march, where he inform'd me that he could not obtain the Ox teams & carts, and doubted of means to bring the Corn Meal on.—I have sent off Capt. Spencer (of the Q'r master's Department) with orders to collect what carriages [carts] he can on his way to Zubly's ferry and Directed him to bring off the Corn Meal if possible so far as Mr. Heyward's plantation, from whence it may after be brought to camp. I have posted a strong Picquet at Port Royal ferry & such other Guards as our safety required & number would afford. The large Boats at Zubly's ferry are sunk in a deep lagoon on the So Car'o. side a little higher up the River—have decided that the Boat which brought the Corn meal be sunk in like manner.

The prisoners are this hour brought by an officer of Col. Garden's, taken at Hilton head & General Bull's Island; the officer reports that the Enemy have removed the Sick from a board the Vessells to the last mentioned place, that they^[49] * * * * * (Pendarvisses)—that on the night of the 21st five white men and four negros landed upon the main, about 3 miles above Colo Garden's command of Militia (and) took off 5 Hogs & some cows.

I have now to renew my request for your leave of absence from Camp, I could add many reasons to those before offer'd; as the necessity for the good of the Service, I hope it will suffice when I assure you it is not to withdraw myself from Duty. Your compliance will oblige

Sir, Your most obedient

B. BEEKMAN.

HISTORICAL SOCIETIES

THE NEW YORK HISTORICAL SOCIETY.—At a stated meeting held March 7 a letter was read from Governor Higgins, acknowledging his election as an Honorary Member of the Society. The paper of the evening, entitled “Unpublished Papers of the Revolutionary War,” by Baron von Closen, Aide to Count de Rochambeau, with stereopticon illustrations, was read by Mr. Clarence Winthrop Bowen. Several views showing the progress in the erection of the new building of the Society were shown.

At the April 4th meeting the Peter Marié Collection of Miniatures, 284 in number, was presented to the Society by the residuary legatees under the will of the late Peter Marié. A daguerreotype of Washington Irving was presented by Mr. Walter L. Suydam.

The thirteenth of the illustrated series of papers relating to the City of New York, entitled: “Memorials of the Revolution Within Our Gates,” was read by Mr. Albert Ulmann, author of a “Landmark History of New York.”

At a stated meeting held on Tuesday evening, May 2, an oil painting of the Dutch School, the “Sacrifice of Abraham,” was presented to the Society by Mrs. Peter Gerard Stuyvesant Ten Broeck; a crayon portrait of Prof. Samuel F. B. Morse was added to the collection by the Dürr Gallery Fund.

The silver medal presented by Congress November 3, 1780, to David Williams, one of the captors of Major John André, September 23, 1780, was presented to the Society by Mrs. Eugene A. Hoffman.

Resolutions, on the death of Mr. Edward Floyd de Lancey, late Chairman of the Executive Committee and Domestic Corresponding Secretary, 1879–1899, were adopted.

Mr. Oswald Garrison Villard read the paper of the evening entitled:
“Wall Street, 1653–1789.”

COMMUNICATIONS

THE FIRST BRITISH PRISONER TAKEN IN THE REVOLUTION

Silvanus Wood of Woburn, Mass., on the alarm of the 19th of April, 1775, left his home at Kendall's Mill and hastened to Lexington where he joined Capt. Parker's company of thirty-seven minute-men on the Common at the time the British regulars fired upon them. He assisted in removing the dead and wounded from the field to the meeting-house and then followed the British troops to Concord, accompanied by a companion who was unarmed. When about a mile beyond the meeting-house, near Parkhurst's Hill in Lexington, Wood observing a British soldier who had left the ranks and was resting by the roadside, ordered him to surrender, which he did, and taking from him his musket and equipment gave them to his companion. They then marched their prisoner to Lexington and delivered him into custody. Wood later enlisted in the army formed by Washington at Cambridge, and was at New York and in New Jersey, at the battle of Trenton [and was wounded at the battle of Pell's Point (Pelham), Oct. 18, 1776. He was then an Ensign in Col. Loammi Baldwin's regiment, the 26th Massachusetts.—ED.].

HERBERT W. KIMBALL.

BOSTON.

MINOR TOPICS.

JOHN PAUL JONES RELICS

There are but three articles in the National Museum which serve as relics of the great naval hero of revolutionary times, whose remains were recently unearthed in Paris by Ambassador Porter. The three articles are in a case containing mementos of the Revolution, and they consist of an old flag which flew at the masthead of the *Bon Homme Richard*, an old flintlock musket, and a fierce-looking cutlass, both of which were captured from the *Serapis* when Jones took that ship in the famous engagement of September, 1779.

The flag of the *Bon Homme Richard* is an interesting relic of the period. It was originally sixteen feet long. It has twelve white stars, and four red and four white stripes. During the battle between the *Richard* and the *Serapis* this flag was worn by Jones' ship, and it was saved by Jones when he and his crew left his sinking vessel for the *Serapis*—WASHINGTON STAR.

BOOK NOTICES.

DESCENDANTS OF JONATHAN TOWLE, 1747–1822, of HAMPTON AND PITTSFIELD, N. H. By ALVIN F. TOWLE, assisted by his son, HERBERT C. TOWLE, J. M. MOSES, A. M., and G. C. SELDEN, A. B., LL. B., FEL. COL. UNIV. BOSTON, MASS.: C. W. CALKINS & CO., Publishers, No. 52 Purchase St. 12mo. pp. 312. Ill. Maps. Price \$3.00 net, postpaid.

The four divisions of this work comprise, respectively, first, a series of six tables giving in brief the principal facts relating to Jonathan Towle and his five children; second, a historical narrative, beginning with the O'Toole family in Ireland; third, the genealogy proper; fourth, a part consisting almost wholly of the portraits of descendants of Huldah (Towle) Chase, and Daniel and James Towle, followed by a copious index. The family history involves customs and personages of colonial life in New England more or less worthy of record, and such as a novelist could well utilize. The book is printed and bound in good style, and is well illustrated.

GENEALOGY OF THE DESCENDANTS OF JOHN DEMING OF WETHERSFIELD, CONNECTICUT. With Historical Notes. Compiled and edited by JUDSON KEITH DEMING, DUBUQUE, IOWA. Press of MATHIS-METS CO., Dubuque, Iowa. 8vo. pp. VIII.+694. Ill. Price \$7.50. Apply to Author or Publishers.

The most noticeable feature of this genealogy is the abundance of biographical matter, in which are embodied the "Historical Notes" mentioned on the title-page. The twelve years' labor of the author has produced such a mass of information respecting the Demings that, in order not to make too large a volume, the female lines are indicated simply by the record of marriage, with no attempt at tracing them further. The coat-of-

arms of the Cole type used as frontispiece, the author himself disclaims as being authentic, and will hardly be regarded by the heraldic connoisseur as wholly in keeping with the other beautiful half-tone embellishments. The book is thoroughly indexed, and printed and bound in superior style.

GENEALOGY OF THE ANTHONY FAMILY FROM 1495 TO 1904. Traced from WILLIAM ANTHONY, Cologne, Germany, to London, England, JOHN ANTHONY, a Descendant, from England to America. With photographs and biographical sketches of the Lives of Prominent Men and Women. 1904. Compiled and published by CHARLES L. ANTHONY. Sterling, Ill. 8vo. pp. 379. Ill.

It is stated in the preface that, though many circumstances render it probable, yet the connection between the German William and the English John Anthony has not been established as certain. John was the grandson of Dr. Francis Anthony, the celebrated physician and chemist, whose “potable gold” was proclaimed by him as a cure for all diseases. Another famous person connected with the Anthony family was Gilbert Stuart, the artist, of whom a biography of considerable length is furnished. Biographical sketches, indeed, are frequent, one of Susan B. Anthony being particularly noticeable. Appended to the genealogy are extracts from the Vital Records of Rhode Island relating to the Anthonys, followed by a chapter on the Nova Scotia branch. The illustrations are chiefly portraits, among them, however, being a coat-of-arms in color. There is a good index, and typographically the volume is fine.

HISTORY, GENEALOGICAL AND BIOGRAPHICAL, OF THE MOLYNEUX FAMILIES. By NELLIE ZADA RICE MOLYNEUX. Syracuse, N. Y.: C. W. BARDEEN, Publisher. 1904. Square 8vo. pp. 370. Ill.

Robert Molyneux, known as the “Comte de Meulin,” is the ancestor whose descendants are recorded in this volume. “The Lineage of the English Branch,” “Lineage of the Irish Branch,” “Molyneux of the West Indies,” “Staffordshire and Sussex Branches,” and “Unclassified”—these sections together with one entitled simply “Molyneux,” form the principal divisions of the work. The last-named chapter contains the Molyneux of America. The name is associated with aristocracy, and persons and places

of high degree are frequently described. The list of authorities preceding the genealogy shows a large proportion of works on the peerage of Great Britain. The genealogy possesses, therefore, much historical interest, the narrative portion of the work equalling in extent that of the vital statistics. The appendix is a specimen of the literary talent of a Molyneux, entitled "Gleanings After a Harvest of Twenty Years in Roman Fields." The index is full, the print beautifully clear, and the margins wide.

LASHER GENEALOGY. In three parts. Edition of two hundred copies. New York: C. S. WILLIAMS. 1904. 8vo. pp. 270. Ill. Map. Price \$3.60. Apply to Publisher, 16 Rivington St., New York City.

Of the three parts of this work the first comprises the descendants of François Le Seur, who came from Normandy to Kingston, N. Y., the second, those of Sebastian Loesher, an early German settler at West Camp, N. Y., the third, those of John Lejere, the record of whose marriage in the Dutch Reformed Church, N. Y., is dated 1723. Church and family records, old papers, tombstones, public documents and historical works, and information received from members of the family are the sources of a well-indexed compilation which will be highly prized by those of the name. Heavy paper, wide margins, remarkably clear print, are the typographical features of the volume. Corresponding in quality to these are the illustrations and binding.

LIFE OF JEFFERSON DILLARD GOODPASTURE; to which is appended a Genealogy of the Family of JAMES GOODPASTURE. By his sons, A. V. and W. H. GOODPASTURE. Nashville, Tenn.: CUMBERLAND PRESBYTERIAN PUBLISHING HOUSE. 12mo. pp. 308. Ill.

Judge Goodpasture was born on Buffalo Creek, near Hilham, Tennessee, in 1824. His extensive law practice and his State Senatorship, though receiving a due share of the biography, are subordinate in interest to what proved to be the principal enterprise of his career, the importation of jacks. The description of his travels in Europe when in search of the animals he had determined to introduce into Tennessee occupies a large portion of the book, and is very interesting reading. The James Goodpasture whose genealogy forms the appendix, was one of the pioneers of Abingdon

Settlement, Virginia, whence he emigrated to Tennessee. Though not written for the public, this memoir of an unusually busy man will give pleasure to all who like to trace a career of deserved success.

THE NANCE MEMORIAL. A History of the Nance Family in General, but more particularly of CLEMENT NANCE, of Pittsylvania County, Virginia, and descendants, containing Historical and Biographical Records with Family Lineage. By GEO. W. NANCE. 1904: J. E. BURKE & Co., Printers, Bloomington, Ill. 8vo. pp. XVI.+354. Ill.

The plan of this genealogy being original and very peculiar, we will quote the author's own description of it: "As far as known to the author no work has ever been published following the plan of this work.... Beginning with the ancestral head of Part I., he is called the trunk. The trunk divides into limbs, the limbs into branches, they into twigs. The twigs bear buds which bring forth blossoms, and the blossoms grow into fruit. So the seven parts of the tree answer to the seven generations of Part I." While it gives what one must call a bizarre appearance to the page to head its columns of names "twigs," "buds," "blossoms," "fruit," it may be that such an arrangement, when understood, is as simple as any commonly used. Mr. Nance claims that it has advantages over others. Be that as it may, the genealogy is an excellent one, very abundant in biographical facts, forming thereby a detailed history of the family, profusely illustrated, well printed, and handsomely and substantially bound.

THE TENNEY FAMILY, OR THE DESCENDANTS OF THOMAS TENNEY OF ROWLEY, MASSACHUSETTS. 1638–1904. Revised, with partial records of PROF. JONATHAN TENNEY. By M. J. TENNEY. Concord, N. H.: THE RUMFORD PRESS. 1904. 8vo. pp. 691. Ill.

The original edition of this work was published in 1891, containing a little more than half of the material of the present one. The praise which was accorded to it as a full and precise record is in a greater degree merited by this volume. The arrangement of the contents of this is the same as that of the other edition, the opening section being "Our English Home," to which succeed the ten "generations" of the genealogy, an appendix having been added relating to Deacon William Tenney, brother of Thomas. An

index of more than sixty pages is a thorough guide in the use of the book. The letterpress is clear, the illustrations nearly all full-page portraits, and the binding of cloth. A colored coat-of-arms serves as frontispiece.

WOODHULL GENEALOGY. THE WOODHULL FAMILY IN ENGLAND AND AMERICA. Compiled by MARY GOULD WOODHULL and FRANCES BOWES STEVENS. Published by HENRY T. COATES & CO., Philadelphia. 1904. 8vo. pp. 366+ LVI. Ill.

The first part of this book, entitled "The Woodhull Family in England," consists of "A Record of the Descendants of Walter Flanderensis," otherwise called Walter de Wahulle. The second part is a "Record of the Descendants of Richard Woodhull I., of Brookhaven, Long Island," to which is added an appendix containing notes on allied families, the work concluding with seventy-eight pages of biographical sketches. The frontispiece is a brilliantly colored copy of an heraldic painting on an oaken panel, called "The Wodhull Achievement," and now in the possession of the Woodhulls of the State of New York. The few other illustrations are principally portraits. Paper and print are of good quality; the binding is of dark green cloth. The index is full, and in connection with it should be mentioned a long list of "References to the Woodhull Family in America" in books and periodicals. Blank leaves follow the index lettered "Births," "Marriages," and "Deaths."

[1.](#)

THE REVOLUTIONARY SOLDIERS OF REDDING, CONN.

And the Record of their Services—with mention of others who rendered service or suffered loss at the hands of the enemy during the struggle for Independence, 1775–1783, together with some account of the Loyalists of the town and vicinity; their organization, their efforts and sacrifices in behalf of the cause of their King, and their ultimate fate. By William Edgar Grumman. Hartford, 1904.

[2.](#) See *Magazine of American History*, 1883–84.

[3.](#) Jones, *Diary*, Vol. I, p. 114. North Carolina alone had contributed more—\$325,000.

[4.](#) Clark, *Education in Alabama*, p. 90.

[5.](#) Acts of Ala., Dec. 7, 1863.

[6.](#) The State authorities considered it inexpedient to levy heavier State taxes. The people had always been opposed to heavy State taxes, but paid county taxes more willingly. So the gift of \$500,000 to the Confederate government in 1861, and the \$2,000,000 war tax of the same year were assumed by the State and bonds were issued.—Stat.-at-Large, Prov. Cong., C. S. A., Feb. 8, 1861; Acts of Ala., Nov. 37, 1861.

[7.](#) Another measure aimed at the speculators.

[8.](#) Acts of Ala., Dec. 8, 1863.

[9.](#) Acts of Ala., Dec. 13, 1864.

[10.](#) Pub. Laws, C. S. A., 1st Cong., 1st Sess., Apr. 21, 1862.

[11.](#) Pollard, *Lost Cause*, p. 427.

[12.](#) Pub. Laws, C. S. A., 1st Cong., 3d Sess., Apr. 24, 1863.

[13.](#) See, also, Curry, *Confederate States*, p. 110.

[14.](#) Pub. Laws, C. S. A., 1st Cong., 4th Sess, Jan. 30, 1864.

[15.](#) Pub. Laws, C. S. A., 2d Cong., 1st Sess., June 10 and 14, 1864.

[16.](#) Miller, *Alabama*, p. 190.

[17.](#) *New York Times*, Feb. 2, 1864.

[18.](#) Fitzgerald Ross, *Cities and Camps of the Confederate States*, pp. 237, 238.

[19.](#) Miller, p. 230.

[20.](#) Acts of Ala., Nov. 19, 1862.

[21.](#) Acts of Ala., Nov. 17, 1862.

[22.](#) Acts of Ala., Oct. 31, 1862.

[23.](#) O. R., Ser. II, Vol. III, p. 933; G. O., No. 86, A. and I. G. Office, Richmond, Dec. 12, 1864; Miller, pp. 198, 199, Beverly, *Hist. of Alabama*; A. C. Gordon, in *Century Magazine*, Sept., 1888; David Dodge, in *Atlantic Monthly*, Aug., 1886.

[24.](#) Pub. Laws, C. S. A., 1st Cong., 3d Sess., Mar. 26, 1863.

[25.](#) A Conference of Impressment Commissioners met in Augusta, Ga., Oct. 26, 1863. Among those present were Wylie W. Mason, of Tuskegee, Ala., and Robert C. Farris, of Montgomery, Ala.—See O. R., Ser. IV, Vol. II, pp. 898–906.

[26.](#) Schwab, p. 202; Saunders, *Early Settlers*. Schedules were printed in all the newspapers, and many have been reprinted in the Official Records.

[27.](#) Jones, *Diary*, Vol. I, p. 194; Miller, *Alabama*, pp. 198, 199; Pollard, *Lost Cause*, pp. 487–488.

- [28.](#) Acts of Ala., Nov. 25, 1863.
- [29.](#) Jones, *Diary*, Vol. I, p. 301.
- [30.](#) Pub. Laws, C. S. A., 2d Cong., 1st Sess., June 14, 1864; Saunders, *Early Settlers*.
- [31.](#) Resolutions of General Assembly, Nov. 26, 1864.
- [32.](#) Ball, Clarke County, p. 501.
- [33.](#) May, Constitutional History II, p. 103.
- [34.](#) Collier, Essay on the Law of Patents, and General History of Monopolies.
- [35.](#) 12 Eliz. 15 Eliz. 18 Eliz. 21 Eliz. 25 Eliz. 26 Eliz. 31 Eliz. and 43 Eliz.
- [36.](#) 11 Eliz.
- [37.](#) 25 H. VIII, c. 15, Sect 1.
- [38.](#) 1 R. III, c. 9. Sect. 12.
- [39.](#) State Trials, Vol. I, p. 1263.
- [40.](#) Mar. 9, 1642; June 14, 1643; Sept. 21, 1647.
- [41.](#) Areopagitica, II, 55.
- [42.](#) 13 and 14 Car. II, c. 33; 16 Car. II, c. 8; 16 and 17 Car. II, c. 7; 17 Car. II, c. 4.
- [43.](#) Carr's Case, State Trials VII, 929.
- [44.](#) Macaulay, Hist. Eng. Chap. xxi.
- [45.](#) Rex v. Sullivan, II Cox. C. C. 52.
- [46.](#) A. V. Dicey, The Law of the Constitution, p. 242.
- [47.](#) Read before the Am. Scenic and Hist. Pres. Soc'y. N. Y.
- [48.](#) Robert Morris.
- [49.](#) Illegible.

TRANSCRIBER'S NOTES

1. Silently corrected obvious typographical errors and variations in spelling.
2. Retained archaic, non-standard, and uncertain spellings as printed.

*** END OF THE PROJECT GUTENBERG EBOOK THE MAGAZINE
OF HISTORY WITH NOTES AND QUERIES (VOL. I, NO. 5, MAY
1905) ***

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